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Ethics: historical perspectives

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Introduction

While a case can be made for saying that human beings share features with non-human animals, there are nonetheless many reasons to regard human beings as set apart from other animals. Our linguistic abilities – something not matched in any real sense by non-human animals – is often cited as one such feature, but our propensity to value certain actions as right, certain character traits as virtues and certain kinds of life as more worthy than others, must surely figure on any list of our special features. Like all other animals, we do things because of the desires, needs and interests we have, but we are also sensitive to value in a way that seems simply absent from the lives of non-human animals. This is not to say that human beings always, or even often, do the right thing or seek virtue and worthiness. It is perfectly consistent with a view of ourselves as moral animals to find that we are also capable of the most appalling acts and lives. But the very fact that morality counts for us and not for other creatures is something that cries out for an explanation. What is it to value in the way that we do? What is it to have an ethical viewpoint? What, in short, is morality that it can and does play the roles it does in our lives? (Note that most philosophers use the terms ‘ethics’ and ‘moral philosophy’ interchangeably, and they are so used in this guide.)

In this course, we will look in detail at the work of five historical philosophers who have undertaken to answer these sorts of question. These philosophers are: Plato, Aristotle, Hume, Kant and Mill. However, their works are not merely of historical importance to the development of moral philosophy. They continue to shape contemporary discussion and, even more importantly, they are part of the fabric of our culture.

In each chapter, there will be a main text and, taking the advice given in the reading list on primary texts, you should aim to read the work carefully and critically. Though I have provided accompanying explanatory material – both about the relevant texts and the problems they raise – you will benefit from, and need to read, the items in the Recommended essential reading. These will not only help to deepen your understanding of the relevant works, they will also help in your critical assessment of them. As you might expect, given the fundamental importance of the works discussed in this course, there is a

huge literature accompanying each of them. The reading lists provided are, therefore, highly selective. However, I have also included Further reading which, if you develop a special interest in one of the texts, will help guide you into the literature. Note too that many of the items in the Recommended essential and Further reading lists include yet more bibliographic information.

Some of the Essential readings that appear in the chapters that follow are available through the Student Portal, either:

1. single chapters of books, which have been made available on the VLE, or
2. articles from different journals, which can be found in the Online Library (for the most part in JSTOR).

These have been marked with an * before the author's name. Other readings are available online. Public internet resources are accessed by clicking links (shown in the standard way selected by your text viewer, and typically changing colour after they have been clicked). Most books recommended in this guide are widely available for purchase from online booksellers.

Plato

Introduction

Though written by Plato, the *Republic* features Socrates as the main character. Since Socrates was a well-known philosopher in his own right, there is an obvious need to say something here about both Plato and Socrates. That said, the facts of their biographies are difficult to pin down, and it has been left to generations of scholars to speculate not only about this, but also about how to apportion between them the ideas that figure in the *Republic* and in the other Platonic dialogues that give Socrates the main speaking role.

Plato and Socrates were both Athenian citizens, Socrates being the elder of the two, and he was certainly Plato's teacher, though not in any formal sense. Socrates' dates are generally accepted to be 469–399 BCE, and Plato's 427–347 BCE. As is often noted, Socrates did not himself produce any written work, and his philosophical reputation comes entirely from what is known about his character, wit and moral seriousness, as detailed in the various Platonic dialogues, but also in the *Memorabilia* of his contemporary, Xenophon, the plays of Aristophanes and in the works of Aristotle. He is thought to have been the son of a sculptor. He didn't spend much time in earning a living, perhaps because of an inheritance, but mainly because he lived, by any standards, a radically simple life, one that generated few material needs. (One tradition has it that he was a stonemason.) His life centred wholly on the political and social life of Athens, and he spent his days mainly in discussion of moral and political matters – indeed, in debate about these – with those who lived and worked in that city. For underlying reasons that have been argued about down the centuries, he was tried and convicted by those in power in Athens for corrupting the young and undermining religious belief. He was sentenced to death and, rejecting the very real option of exile, is supposed to have faced his sentence with extraordinary dignity, calmly drinking the hemlock given as the method of execution allowed to Athenian citizens. As to his philosophical positions, very little can be said with any certainty, especially given that he famously insisted that he did not himself know anything. No less famously – even notoriously – he felt that he had to seek knowledge from others by endlessly questioning them about their understanding of, among other notions, virtue, friendship, love, knowledge and piety, and he maintained that a life not examined by such reflective inquiry was not worth living.

Plato came from a wealthy and powerful family in Athens, members of which were deeply implicated in the political turmoil that followed the Athenian defeat at the hands of Sparta in 404 BCE. (Socrates' death sentence is often thought to be the indirect result of this turmoil.) As a result, Plato seems to have distanced himself from Athenian politics, though it is known that he travelled to Syracuse in Sicily, and is thought to have given political advice to the ruler of that city. Whatever the truth about Plato's political activities, there is no doubt about his having established a philosophical school in Athens – the Academy – which endured for some centuries. He also wrote a great deal, most of it in dialogue form, and it is from these dialogues that we have gleaned most of what we know, both about his and Socrates' thought.

The *Republic* is one of the longest, and certainly the richest, of Plato's dialogues, and it has a somewhat odd shape. It is generally reckoned to come in the middle period of Plato's writing: the earlier dialogues tend to be short and have the inconclusiveness one associates with Socrates' method of cross-questioning, whereas the later ones tend to be more assertive, and in some cases do not involve Socrates at all. Divided into ten books, the first book of the *Republic* reads like one of the early dialogues in which Socrates cross-questions various characters about their understanding of justice, but in the remaining books one finds Socrates arguing for, typically with very little input from his interlocutors, various philosophical views about justice and other matters.

Given Socrates' emblematic insistence on his lack of philosophical knowledge, commentators have suggested that the first book was originally one of the early dialogues, and that the philosophical doctrines of the later books mark the point at which Plato, in spite of using Socrates as the main character, diverges from his teacher and presents his own views. However, it should be borne in mind that the actual texts we have of the *Republic* and other dialogues date from more than 1,200 years after Plato wrote, and that most of the conclusions scholars draw about the order of Plato's compositions, and their content, are based mainly on internal evidence from these texts, many of which might have been extensively edited throughout the long period during which they were copied and re-copied. However, putting on one side these vexed issues of authorship, the discussion below will follow tradition in identifying Plato as responsible for the views about justice expressed in the *Republic*.

The focus of this chapter is Books I, II and IV of the ten books that make up the whole, and it focuses sharply on Plato's account of justice and morality. However, the whole of the *Republic* is concerned, directly or indirectly, with morality, so the selection sketches, rather than details, the Platonic view.

Though reading the whole of the *Republic* is certainly to be recommended, our selection aims at giving an uncluttered view of the sources and general shape of Plato's moral theory. Moreover, even though it involves severe pruning, the recommended texts give one a lively sense of his writing, and his vivid representation of Socrates.

Reading

Primary texts

There are many translations of the *Republic*. The citations in the text below are from the Paul Shorey translation (available both in Loeb Classical Library, two volumes, published in 1930, and in E. Hamilton and H. Cairns, *Plato: The Collected Dialogues*, New York: Pantheon Books, 1961).

The translation by Benjamin Jowett is available from the Gutenberg Project (use index on www.gutenberg.org/ebooks/), and is perfectly acceptable for use in this course.

Note: References to Plato's works almost always use Stephanus page numbers, based on an edition of Plato's works from the sixteenth century. These consist of the name of the dialogue, then the page number, then a letter indicating a section of the page.

Recommended essential reading

Brown, Eric 'Plato's Ethics and Politics in *The Republic*', *The Stanford Encyclopedia of Philosophy* (Winter 2011 edition), Edward N. Zalta (ed.), <http://plato.stanford.edu/archives/win2011/entries/plato-ethics-politics/>

Santas, Gerasimos (ed.) *The Blackwell Guide to Plato's Republic*. (Oxford: Blackwell, 2006) [ISBN 9781405115643].

Annas, Julia *An Introduction to Plato's Republic*. (Oxford: Clarendon Press, 1981) [ISBN 0198274297].

* Cooper, John M. 'The Psychology of Justice in Plato', *American Philosophical Quarterly*, 14(2), 1977, pp.151–57.

* Dahl, Norman O. 'Plato's Defence of Justice', *Philosophy and Phenomenological Research*, 51(4), 1991, pp.809–34. (Also in Fine (ed.) listed in Further reading.)

* Demos, Raphael 'A Fallacy in Plato's *Republic*?', *The Philosophical Review*, 73(3), 1964, pp.395–98.

* Kraut, Richard 'The Defense of Justice in Plato's *Republic*' in Kraut R. (ed.) *The Cambridge Companion to Plato*. (Cambridge: Cambridge University Press, 1992) [ISBN 0521430186] pp.311–37.

* Lear, Jonathan 'Inside and Outside the *Republic*', *Phronesis*, 37(2), 1992, pp.184–215.

* Sachs, David 'A Fallacy in Plato's *Republic*', *The Philosophical Review*, 72(2), 1963, pp.141–58. (Also in Vlastos (ed.) listed in Further reading.)

* Smith, Nicholas D. 'Plato's Analogy of Soul and State', *Journal of Ethics*, 3(1), 1999, pp.31–49, 398. (Also in Vlastos (ed.) listed in Further reading.)

Vlastos, Gregory 'Justice and Happiness in Plato's *Republic*' in Vlastos, G. (ed.) *Plato: A Collection of Critical Essays, II: Ethics, Politics, and Philosophy of Art and Religion*. (Notre Dame, Ind: University of Notre Dame Press, 1978) [ISBN 9780268015299].

Further reading

Fine, Gail (ed.) *Plato 2: Ethics, Politics, Religion, and the Soul*. (Oxford: Oxford University Press, 1999) [ISBN 0198752040].

Frede, Dorothea 'Plato's Ethics: An Overview', *The Stanford Encyclopedia of Philosophy* (Summer 2009 edition), Edward N. Zalta (ed.), <http://plato.stanford.edu/archives/sum2009/entries/plato-ethics/>

Kraut, Richard (ed.) *Plato's Republic: Critical Essays*. (Lanham, MD: Rowman & Littlefield, 1997) [ISBN 0847684938].

Vlastos, Gregory (ed.) *Plato: A Collection of Critical Essays, II: Ethics, Politics, and Philosophy of Art and Religion*. (Notre Dame, Ind: University of Notre Dame Press, 1978) [ISBN 9780268015299].

Ethics and justice

The main topic in the *Republic* is justice and this, together with its title, encourages the thought that the work is one of political philosophy. However, even the most casual reading shows that matters are not so straightforward. In a familiar contemporary usage, 'justice' can be taken to be concerned with the distribution of goods and harms. If a society concentrates its wealth on a very few, allowing others little opportunity to do well, or if its legal system metes out punishments to the innocent and is distorted by financial considerations, we say that these arrangements are unjust. However, there is another understanding of the notion, which is also in contemporary use. The person who keeps promises, helps those in need, takes trouble over understanding others' problems and generally behaves in morally praiseworthy ways, not for any reward, but simply because it is right – such a person is naturally described as being just or good. In this sense, justice is a moral virtue – perhaps **the** moral virtue – and it is only indirectly connected with the more political notion of justice in distribution. In Plato's *Republic* one can see the two notions in play, weaving in and out of discussion in interesting ways. So when one says that Plato's *Republic* has justice as its central theme, what is in play is as much morality in general as the more narrow kind of morality that we think of in connection with various political institutions.

The common understanding of justice

This interweaving of the various senses of justice is very well illustrated in Book I, which (as noted above) reads like one of the earlier Socratic dialogues, and may well

have been written separately from the remainder of the *Republic*. Its opening gives a genuine sense of place to the ensuing discussion, which itself displays the dogged, and sometimes infuriating, quality of Socrates' cross-questioning. And while that cross-questioning can seem heavy-handed, the underlying structure of Book I – from its opening page – is very subtle.

Seeking a definition of justice, the first substantial suggestion comes with the poet Simonides' formulation: justice is 'rendering to each his due'. Several pages of argument later, Socrates and his interlocutor Polemarchus find themselves dissatisfied with this formulation, largely because it is unclear what it means, and attempts to sharpen it only result in its being pushed into awkward corners by Socrates' questioning.

It is at this point that the dialogue takes a dramatic turn. Thrasymachus had been listening to the line of argument – none too patiently – and he erupts in anger at Socrates and at what he describes as the 'balderdash' that has figured so far in discussion. Instead of constantly asking questions, he demands that Socrates himself provide a definition, one which doesn't involve 'drivel' such as that justice is what ought to be, is beneficial, profitable or advantageous. Alarmed by Thrasymachus's vehemence, Socrates uses a mixture of flattery and humility both to calm him down and to encourage him to give his own definition of justice. Thrasymachus seems to be a historical figure, not simply a fictional character in the dialogue. He was known to be a Sophist, a group of philosophers who specialised in 'for profit' education, teaching Athenians how to get ahead by winning arguments. (Note, though, that Plato gives a uniformly unflattering portrait of them, which may well be wide off the mark.) Fittingly, then, Thrasymachus insists that he will offer his definition of justice only when he is paid a fee for it. Socrates offers all he has at his disposal – praise for a genuinely wise answer – and the other participants offer to stump up the fee.

When Thrasymachus does finally offer his definition, it is wholly consistent with his character, as described above in the dramatic interchanges: justice, he says, is 'nothing else than the advantage of the stronger'. And, predictably, Socrates gets to work on this formulation straightaway, claiming that he doesn't yet properly understand it.

The lines of questioning Socrates pursues manage to do two things. First, they somewhat indirectly bring out more clearly what Thrasymachus' definition really comes to and, second, they lead us to think that Socrates is being less than serious in his examination of that definition. Both of these re-emerge in Book II, but it is worth briefly considering here Thrasymachus' underlying point.

Defining justice as 'what is to the advantage of the stronger', Thrasymachus is at once attempting to be hard-headed about both political and moral reality. He makes clear that by the 'stronger' he means those rulers who manage to wield power over the rest of the population,

and he is thereby making the familiar point that this kind of political power allows the rulers to shape laws and social institutions so that their interests are furthered. In effect, he is saying that powerful rulers can co-opt the notion of justice for their own ends. But he is not making a merely political observation about justice. For he seems also to be saying that the 'stronger' are able to shape the very idea of what it is to be moral; that the very idea of the virtue of justice in an individual is one defined by whatever is in the interests of those who wield power in a society. In one particularly telling comment Socrates says:

For if your position were that injustice is profitable yet you conceded it to be vicious and disgraceful as some other disputants do, there would be a chance for an argument on conventional principles. But, as it is, you obviously are going to affirm that it is honourable and strong and you will attach to it all the other qualities we were assigning to the just, since you don't shrink from putting it in the category of virtue and wisdom.

To which Thrasymachus replies: 'You are a most veritable prophet.'

The challenge to Socrates

The remainder of Book I sees Thrasymachus so exasperated by what he sees as Socrates' wilful misunderstanding of his position that he simply nods agreement with each further line of Socratic questioning. Perhaps surprisingly, Socrates doesn't seem to mind this, and the Book ends with Socrates apparently satisfied that he has shown Thrasymachus to be wrong, while leaving us deeply unsatisfied – nor is this dissatisfaction merely one we as readers experience. For Book II opens with two of the participants in the discussion – Glaucon and Adimantus – expressing their own dissatisfaction with how things had gone, and each separately challenging Socrates to do better. What they most want is to be offered genuinely persuasive arguments showing that the ordinary conception of justice – the ordinary conception of moral worth – is a good of a very special sort. They note that some things are regarded as good for their own sake, for example, the enjoyment of harmless pleasures; some for their effects, even if they are not themselves intrinsically good, for example, exercising to maintain or regain health; while a third kind of good is valued both for its own sake and for its effects, for example, understanding and health. What they want Socrates to show is that, in spite of the arguments that Thrasymachus and others have offered, justice is of this third kind. And, even more specifically, each of them offers extended arguments that, as they say, are common and which purport to show that justice and morality cannot be goods in this third class.

A useful exercise is to compare the arguments offered by the brothers Glaucon and Adimantus (and Plato had brothers with these names), both with each other and with the position put forward by Thrasymachus. There are, of course, similarities in the three, but there are differences. The basic theme that recurs in Glaucon's and Adimantus' challenges is that justice is at best a good of the second kind: one we put up with, rather like exercise or a trip to the dentist, because we recognise that there is some benefit in so doing. In contrast, Thrasymachus's view seems more radical: as noted above, he maintains that the very idea of rightness – the very notion of a just human being – is somehow dependent on the influence of one group within any society.

Glaucon's version of his challenge includes a reference to a legend that has come to have a perennial significance for any attempt to justify morality. This is the legend of Gyges' ring. The ring in question is said to confer a special power on its wearer: if it is twisted on the finger, it renders the wearer invisible. Gyges is said to have used this ring to eliminate a king and marry the queen, becoming extremely rich along the way. The question Glaucon asks is: what arguments could we offer to someone who came into possession of the ring and was tempted by its power to ignore the various demands of moral behaviour? This legend captures precisely a thought that recurs throughout human history: if someone has enough power or resources to ignore any retaliation from others for moral transgressions, what reason can we give such a person to remain morally upright? Socrates agrees to set about answering this question; indeed, he takes on an even more difficult version of it. For he promises Glaucon and Adimantus an answer showing that justice is not only good for its own sake but also for its consequences; to show, that is, that someone who is morally just is both happier and better off than someone unjust.

Setting out a model of the city-state

Socrates insists that the answer will take some effort, and that it will require 'keen vision' to discern. Noting, then, that it is easier to see large letters at a distance than small ones, he suggests that they would do best to look at justice 'writ large', that is to say, to look at justice in the political city-state. 'There is a justice of one man, we say, and I suppose of an entire city.' And that because the city-state is 'larger' than the single human being, it should be easier to see.

Many commentators (and ordinary readers) find this move surprising. The analogy of large and small letters seems a rather flimsy basis for the argument, and one is tempted to resist the idea of justice as figuring in the same way in city-states and individual human beings. However, his interlocutors do not resist, and we thus embark (beginning at 369b) on a long discussion of the origin and

construction of the city-state, with a view to finding out what it means to describe at least one such entity as just.

You should read through the pages in which this construction is effected and justice found, though here a simple outline will suffice.

1. The construction begins by considering the conditions which ground the origin of human societies: the fact that human beings have many needs and desires which can only be satisfied by our cooperating with each other in various ways. The upshot of this is a simple or primitive city-state in which basic human needs are satisfied. Socrates suggests that with this as a background, we can set about finding justice in such a city-state. However, Glaucon and Adimantus are far from satisfied. The former says: 'If you were founding a city of pigs, Socrates, what other fodder than this would you provide?' (372d), and Socrates is thus forced to complicate his story by describing not the 'true' or 'healthy state', but what is said to be the 'luxurious' state.
2. The characterisation of this state is enormously detailed, and stretches from the remainder of Book II to Book IV (427c-d). It is puzzling that there is so much detail, given Plato's expressed aim of using the state only as a model in helping us to understand morality. But Glaucon and Adimantus seem captivated by it, and it is the reason many see Plato as concerned more with political than moral philosophy. (Though perhaps he wouldn't have understood this contrast in the way we do now.) Out of this detail emerges a description of a social and political order with three clearly defined parts, each of which has an important role to play in the functioning of the city-state. One order is concerned with production, commerce – with those activities that provide for society's material needs. Another is made up of those whose ability and intellect allow them to have the most rigorous education, and who then serve as rulers of the city-state. The third order contains those – often referred to as 'guardians' – whose role is to protect the state from internal and external enemies.
3. Having established this tripartite structure, Socrates then begins the search for what would count as justice in it. The first stage consists in describing the virtue – in Greek 'areté' or excellence – special to each of the social orders. (This discussion goes from 427e to 432b.) The virtue of the rulers is wisdom, that of the guardians is courage and there is a virtue of self-mastery, which extends to all three orders. This last is sometimes misleadingly called 'temperance' or 'sobriety', but what it comes to is basically a holding in check of one's desires, so that, for example, one does not let one's desire for power usurp roles belonging to others. The stage is then set for the final search – Socrates compares it to a hunt – for the notion of

justice in the tripartite state. Socrates rather surprises his interlocutors by noting: 'Why, all the time, bless your heart, the thing apparently was tumbling about our feet from the start and yet we couldn't see it, but were most ludicrous, like people who sometimes hunt for what they hold in their hands' (432e). For it turns out that when the various parts of the social order display the virtues of wisdom, courage and self-mastery, the whole of society is in fact just. In sum, justice is a kind of social harmony: it is what one has when every part of the social order works as it should or, in Socrates' phrase, it is 'this principle of doing one's own business' (433b).

Justice and morality

There are many questions raised by Plato's construction of the city-state; at the end of this chapter, I will mention some that you might like to investigate further. However, the work at hand – the work for which the construction was undertaken – is understanding and grounding justice and morality in individual human lives. That task begins with Socrates attempting to show that the individual human soul can be understood as divided into three parts, each corresponding directly to the three social orders of the city-state. (Note that talk of 'soul' – Greek '*psuché*' – is not the religious concept, but is instead closer to 'mind'. It is that which determines the character of an individual human life.) As with the construction of the city-state, Socrates' attempt to find appropriately related parts of the soul is complex and, as one might expect, controversial. While it is no substitute for your own careful reading, an outline of this attempt goes as follows:

1. Socrates cleaves to a basic principle in dissecting the soul: if we find that an individual desires some thing, X, and is at the same time resisting X, then this shows there to be different parts of the soul, one responsible for the positive desire and the other for the negative, resisting one. His first example is that of someone who yearns to drink but who somehow resists doing so, and this possibility supports the first division of the soul. Socrates says: 'Not unreasonably... shall we claim that they are two and different from one another, naming that in the soul whereby it reckons and reasons, the rational, and that with which it loves, hungers and thirsts, and feels the flutter and titillation of the other desires, the irrational and appetitive...' (439d).
2. With reason and appetite established as two parts of the soul, Socrates turns to the third. His first thought is that we might find it in what the Greeks called '*thumos*'. Translated as the principle of 'high spirit', this might be easier for us to understand as, broadly, the emotions, a view supported by Socrates' gloss of *thumos* as: 'that with which we feel anger' (439e). Glaucon wonders whether *thumos* is simply an aspect of our appetitive

side, but Socrates tells a story suggesting otherwise. Leontius, on passing by the bodies of executed criminals, felt an appetitive and primitive desire to look at them, and also, not unnaturally, a repugnance in so doing. In the end, his primitive appetite won out, but he found himself angry at having done this and vented his anger on what he described as his wretched appetites. Socrates takes this to show the principle that 'anger sometimes fights against desires', and this confirms Socrates' initial thought that the emotions are an independent, third part of the soul.

3. For Socrates' argument, what matters is not merely that there are three parts of the soul, but that they correspond appropriately to the three social orders in the state. Rather surprisingly, this is dealt with very perfunctorily (see 441c). Perhaps Plato thought it was enough to discover that the three main virtues of the social orders – wisdom, courage and temperance – apply to the parts of the soul. However, while it seems appropriate to think that the virtue of reason is wisdom, the others less clearly stand on their own, and seem to lean on the analogy of the state rather heavily.
4. Once Socrates obtains agreement about the parts of the soul and their virtues, justice comes to be understood – as it was in relation to the state – as a virtue of the whole person, one in which each of the parts realises its own excellence and no one part of the soul usurps the role of another. The just person, then, is one whose life displays a kind of inner harmony: reason rules, the emotions support reason's judgements, and neither the appetites nor the emotions attempt to rule that life. Socrates says: 'Virtue, then, as it seems, would be a kind of health and beauty and good condition of the soul, and vice would be disease, ugliness, and weakness' (444e). Just a page or so before this, he had also argued that the just person was not likely to lie, embezzle or in any other way engage in activities that are considered unjust by what he describes as our 'commonplace and vulgar tests'.
5. What then remains to be seen is how this conception of individual justice stands up to the original challenge put to Socrates by Glaucon and Adimantus. But it is apparent to these interlocutors that Socrates' conception simply meets this challenge in a wholly obvious way. One of them says:

I think from this point on our inquiry becomes an absurdity – if, while life is admittedly intolerable with a ruined constitution of body even though accompanied by all the food and drink and wealth and power in the world, we are yet to be asked to suppose that, when the very nature and constitution of that whereby we live is disordered and corrupted, life is going to be worth living,

if a man can only do as he pleases, and pleases to do anything save that which will rid him of evil and injustice and make him possessed of justice and virtue – now that the two have been shown to be as we have described them (445a-b).

The importance of Plato's argument cannot be overestimated. He sets out to show that the virtue of justice – a disposition evidenced in a morally worthy life – is a goal we should aim for independently of any consequences that might follow from possessing this virtue. Socrates takes himself to have shown that justice is not merely like health, but in fact is more important to each of us than health. For health is a bodily condition, whereas justice is one of the soul. One way of putting this is to say that Socrates takes himself to have shown that we have no reason at all to use the ring of Gyges so as to be able 'to do as we please'; and that we have every reason to live a just and morally worthy life, whatever our circumstances or role in society.

Interpretation and defence

Plato's defence of morality is certainly one of the strongest in the long history of ethics. It is a long argument, and includes many moves that depend on analogies and metaphors. Unsurprisingly, then, it has been challenged in many different ways, and I have no doubt that you will yourself think of issues it raises.

Some of these issues are ones of interpretation, others concern moves in his arguments. Chief among the former is the question about how seriously – and on its own – we are to take Plato's highly specific account of the city-state, given Socrates' claim that its purpose is to help us see individual justice more clearly. There are also interesting questions to be asked about the relationship between Thrasymachus' views in Book I and the specific challenges that Glaucon and Adimantus mount in Book II.

As to the cogency of Plato's arguments, one issue that has received a lot of attention concerns the move in the *Republic* from thinking of morality as a matter of how we ought to treat one another – for example, not lying, cheating, injuring one another – to its being a matter of the state of one's individual soul. Some regard this as a subtle but damaging changing of the subject; others as providing a necessary improvement on a superficial conception of morality.

Other than this large issue, many smaller details of the argument call for further investigation. Leaving aside the description of the city-state, is Plato's division of the soul into three parts reasonable and well motivated? That is, should we accept that conflicted plans for acting are a sufficient basis for the divisions Plato makes?

Finally, a word about knowledge and education in relation to morality. The education of the guardians and rulers is described at some length in Plato's construction of the city-state, but it is a matter of dispute how this is supposed to figure in individual justice. In the later books of the *Republic*, Plato has a great deal to say about knowledge, and its acquisition. One presumes that he thought a fully virtuous agent would also be one who had followed Plato's guidance in respect of knowledge and was therefore genuinely wise. But the rulers are described as a particularly select group in a society, so it is an open question whether any individual aiming at virtue will have the ability to get even close to wisdom. Given that justice requires that one be ruled by reason in the soul, and that being so ruled requires reason to be in possession of knowledge and thus wisdom, it is simply not clear where that leaves most of us in relation to genuine virtue.

Aristotle

Introduction

Aristotle was born (384 BCE) in Stagira in the Chalcidicean peninsula of Macedon – now northern Greece – but his philosophical career is firmly associated with Athens. Arriving there when he was 18, he was a distinguished pupil of Plato's at the Academy for nearly 20 years, until the latter's death. On being passed over for the position of head of the Academy, Aristotle left Athens and was eventually summoned to the court of Philip II of Macedon to serve as tutor to his son, the 13-year-old Alexander. When the latter embarked on the military campaigns that, as it were, transformed him into the young Alexander the Great, Aristotle returned to Athens (in 335 BCE) and founded his own institution, the Lyceum. Alexander was not popular in Athens, and when news of his death in 323 BCE reached that city, Aristotle thought it prudent to leave, reputedly insisting that in doing so he would avoid Socrates' fate, and therefore prevent Athens from 'sinning twice against philosophy'. He himself died the following year.

Further details about his life are matters of speculation. Much has been written both about what some regard as the strained relationship between Plato and Aristotle, and about the extent of Aristotle's influence on Alexander the Great. The one thing we can be sure of is that, together with Plato, Aristotle transformed the Greek philosophical scene and, as a result, the whole of philosophy up to the present. His work covered what today would be regarded as natural and social science as well as the more conventional philosophical topics of logic, metaphysics, ethics, the philosophy of mind and the philosophy of art. Very unfortunately, we seem to have only about a fifth of the writings he was known to have produced, and much of what we do have seems to be notes for lectures given in the Lyceum, perhaps even lecture notes taken by students.

The main text for this course is the work known as the *Nicomachean Ethics*, a treatise probably dedicated to his son Nicomachus (who was named after Aristotle's father). There is another Aristotelian book on ethics – the *Eudemian Ethics* – which overlaps with the *Nicomachean Ethics*. However, the latter is thought to be more definitive of Aristotle's thinking on morality and is the usual point of reference for scholarly interpretation. (Note that references below to the *Ethics* are always to the *Nicomachean Ethics*.) Though it is not very long, and I recommend that you read it in its entirety, I indicate below the parts of this work that should be studied most carefully.

Reading

Primary text

Nicomachean Ethics Books I, II–VI, VII (Chapters 1–3) and Book X (Chapters 6–9).

There are many translations of this work which are widely available and will serve for this course. One such version on the internet is the translation by W.D. Ross, which is the translation used for the various quotes in the text below (see <http://classics.mit.edu/Aristotle/nicomachaen.html>)

Note: References to Aristotle's text follow the pagination of the Berlin edition of Bekker, as is now universal in Aristotelian scholarship. Thus, the reference to the opening sentence of the *Ethics* is 1094a1–3. This means: page 1094 of the Bekker edition, column a (the Bekker edition has columns a and b on each page), lines 1 to 3.

There are also translations with commentaries that can be helpful. One such is:

Rowe, Christopher *Nicomachean Ethics*. With philosophical introduction and commentary by Sarah Broadie. (Oxford: Oxford University Press, 2002) [ISBN 0198752717].

Recommended essential reading

Barnes, Jonathan 'Aristotle and the methods of ethics', *Revue Internationale de la Philosophie*, 34, 1981, pp.490–511.

Broadie, Sarah *Ethics with Aristotle* (New York: Oxford University Press, 1991) [ISBN 0195085604].

Charles, David 'Aristotle's Weak Akrales: What does her Ignorance Consist in?' in Bobonich, Christopher and Pierre Destree (eds) *Akrasia in Greek Philosophy*. (Leiden: Brill, 2007) [ISBN 9789004156708] pp.193–214.

Charles, David 'Aristotle on Well-Being and Intellectual Contemplation', *Aristotelian Society, Supplementary Volume*, 73, 1999, pp.205–23.

* Cooper, John *Reason and Human Good in Aristotle*. (Indianapolis, IN: Hackett, 1986) [ISBN 0872200221] Chapter 1.

* Korsgaard, Christine 'Aristotle on Function and Virtue', *History of Philosophy Quarterly*, 3(3), 1986, pp.259–79. (Also reprinted in her *The Constitution of Agency*. (Oxford: Oxford University Press, 2008) [ISBN 9780199552740].

Kraut, Richard 'Aristotle's Ethics', *The Stanford Encyclopedia of Philosophy* (Spring 2012 edition), Edward N. Zalta (ed.), <http://plato.stanford.edu/archives/spr2012/entries/aristotle-ethics/>

Kraut, Richard (ed.) *The Blackwell Guide to Aristotle's Nicomachean Ethics*. (Malden, MA; Oxford: Blackwell, 2006) [ISBN 1405120215].

Lawrence, Gavin 'The Function of the Function Argument', *Ancient Philosophy*, 21, 2001, pp.445–75.

* McDowell, John 'Eudaimonism and Realism in Aristotle's Ethics' in *The Engaged Intellect: Philosophical Essays* (Cambridge, MA: Harvard University Press, 2009) [ISBN 9780674031647] pp.23–40.

Pakaluk, Michael *Aristotle's Nicomachean Ethics: An Introduction*. (Cambridge: Cambridge University Press, 2005) [ISBN 9780521520683].

* Williams, Bernard *Ethics and the Limits of Philosophy*. (Cambridge, MA: Harvard University Press, 1985) [ISBN 000686001X] Chapter 3.

Whiting, Jennifer 'Aristotle's Function Argument: A Defense', *Ancient Philosophy*, 8, 1988, pp.33–48.

Further reading

Barnes, Jonathan, Malcolm Schofield and Richard Sorabji (eds) *Articles on Aristotle. Volume 2: Ethics and Politics*. (London: Duckworth, 1977) [ISBN 0715609300].

Barnes, Jonathan (ed.) *Cambridge Companion to Aristotle*. (Cambridge: Cambridge University Press, 1995) [ISBN 0521422949].

Cooper, John *Reason and Human Good in Aristotle*. (Indianapolis, IN: Hackett, 1986) [ISBN 0872200221].

Lear, Jonathan *Happiness, Death, and the Remainder of Life*. (Cambridge, MA: Harvard University Press, 2000) [ISBN 0674003292].

Miller, Jon (ed.) *A Critical Guide to Aristotle's Nicomachean Ethics*. (Cambridge: Cambridge University Press, 2011) [ISBN 9780521514484].

Nussbaum, Martha C. *The Fragility of Goodness*. (Cambridge: Cambridge University Press, 1986) [ISBN 0521277027].

Introduction to *Ethics*

The *Ethics* is a rich and varied work, some of it dealing with foundational questions about morality, some of it with issues that can seem tangential to moral theory. In an important sense, this variety is precisely what makes Aristotle's contribution to moral philosophy so special. One can think of Aristotle as setting out to tell us – and argue for – a conception of a good and worthy life. Because the life in question is a human life, and because human beings are rational, social, political and, above all, moral creatures, this project is bound to look in detail at what explains – and what follows from – the specialness of human beings. Along the way, one would therefore expect to find philosophical discussions of what it is to make choices of an ethical sort, discussions of what it is to be sensitive to moral value and disvalue. One would also be unsurprised to find discussions of values that are related to – but not always understood as – part of morality in any narrow sense. Thus, as well as fundamental discussions of moral choice, one finds discussions of good temper, pride, vanity, meanness, wit, ambition, vulgarity and a whole book devoted to friendship. In the survey below, there won't be space to consider the things Aristotle says about these human qualities and defects; our main focus will be on certain more foundational issues. But I urge you to read the whole of the *Ethics* to get a sense of the roundedness

of Aristotle's conception of human life, and because it helps flesh out a number of the things Aristotle says about narrower moral issues.

Eudaimonia

The opening sentence of the *Ethics* reads:

Every art and every inquiry, and similarly every action and pursuit, is thought to aim at some good; and for this reason the good has rightly been declared to be that at which all things aim.

It is evident that this claim is partly dependent on what others have said or thought. The careful consideration of others' opinions, especially philosophical predecessors, is a hallmark of Aristotle's writing. Also evident shortly after this (1094b12–14) is Aristotle's insistence that we must recognise that each subject matter has a precision appropriate to it. Ethics is thus likely to be less rigidly precise than logic or mathematics.

The opening sentence and its explication essentially put down a marker for further work. He says that what we aim at, in every case, is the good – not a single thing for everything we do, and likely different in each case – but 'good' here is really a kind of place-holder. Any attempt to say more substantially what human beings do or should aim at in acting must fill in this place-holder. And Aristotle doesn't waste any time in so doing. He writes: 'Verbally, there is general agreement; for both the general run of men and people of superior refinement say that it is happiness; and identify living well and doing well with being happy' (1095a16–19), where 'happiness' is the translation of the Greek *eudaimonia*. (This translation has its own problems, as you will appreciate from your reading, but it is difficult to think of a better one.) As soon as he notes that the place-holder 'the good we aim at' is filled by 'happiness', Aristotle notes that there is little agreement about what constitutes happiness. Working out how best to decide this, and considering the constraints on doing so, sets the agenda both for Book I, and for much of the remainder of the *Ethics*.

At around 1097b1, he notes that *eudaimonia* is rather special: we value honour, pleasure and reason for themselves, but 'we choose them also for the sake of happiness'. Whereas, happiness is itself not something we choose for the sake of anything else – it is a self-sufficient good. Still, he notes that we have yet to say exactly what it is, and in one of the most well-known and controversial arguments of the *Ethics* (beginning at 1097b23), he sets out to do just that.

The beginning of the argument seems simple enough. Things have functions (or uses or purposes), and if we know what the function of something is, we can say what constitutes its excellence (or virtue). (If the function

of a saw is to cut wood, then cutting well is what a saw's excellence consists in.) So if we could work out the function of humankind, we could presumably say what doing well and living well would be for us. Aristotle suggests that we can only understand this function when we understand what is special about us and the lives we lead. Because rationality and active engagement with life are both key features of humankind, he concludes that what is best for us – what could plausibly constitute our happiness – 'is an activity of the soul in accordance with virtue...' (1098a16–17), where he has made it clear that this activity must involve both our rational and social nature.

There are two particular areas of controversy about this argument: the first concerns the plausibility of thinking that there is such a thing as the function or purpose of a human being; and the second concerns the studied vagueness of the conclusion. Your further reading will help you to a deeper appreciation of these issues, but this brief pointer might be helpful. The ordinary understanding of 'function' or 'purpose' might not serve one well in understanding Aristotle's point. It might be better to think here not of 'function', but of 'characteristic nature', and that our happiness therefore consists in our living up to human potential, something which for Aristotle means living an active life based on intellect and social cohesion.

The moral virtues

After investigating this formulation in some detail, Aristotle concludes Book I (and opens Book II) with a division of virtues into two sorts: the intellectual and the moral. Moral virtues, he insists, come from instilling habits, something that requires education (a good upbringing) and practice. He says: '... none of the moral virtues arise in us by nature' (1103a19), and it is the moral virtues that form the subject matter of Books II–V. After giving a definition of moral virtue, Aristotle discusses in some detail a whole range of familiar virtues (and vices): courage, temperance, liberality, prodigality, pride, vanity, ambition, good temper, irascibility, friendliness, obsequy, shame and – finally, and at some length – justice. Perhaps the most well-known feature of his discussion is his claim that in virtually every case, virtue is the mean between a pair of vices which lie at some extreme end of a scale. Thus, courage is a character trait that can be understood to lie between, on the one hand, foolhardiness and, on the other, cowardice. It is controversial – and requires a careful reading of his text – to see whether this doctrine of the mean fits every case. As Aristotle himself points out at the beginning of Book VI, knowing that in respect of virtues one should aim for something that is neither too little nor too much is not yet knowing very much.

The intellectual virtues

The introduction to Book VI repeats the division of virtues into the moral and intellectual, and makes a strong case for saying that the intellect plays the crucial role in our understanding of human good. More specifically, Aristotle argues that a particular virtue of the intellect – practical wisdom – is the key to living well, in that it leads us to choose the right goals and to achieve them in the most rational way. This virtue he regards as rationality in action, and contrasts it with scientific (or theoretical) wisdom and also with the practical wisdom required for making things – for art and craft.

It is very important to understand specifically why Aristotle thinks practical wisdom is both different from any other sort and so important to moral life generally. He thinks that philosophical and theoretical (scientific) wisdom are concerned with things that are unchanging or necessary. Thus, knowing that two plus two equals four, or knowing that a certain plant produces edible fruit, are different kinds of theoretical knowledge, but both have a claim to being unchanging in this sense: once true, their truth is fixed. (The plant may change genetically in future so as to produce inedible fruit, but the truth about the original plant remains true.) However, Aristotle points out that practical knowledge is deliberative, it is about what to do, and thus it depends on an ability to know appropriate general truths, perceive particular circumstances and combine these two in working out the best course of action. Though this might be a bit more definite than anything Aristotle actually says, we could say that the results of investigations like those in science can be described as true or false, the upshot of practical deliberation is an act, something that in itself is neither true nor false. (See 1143a8–10.)

In Chapter 13 of Book VI, Aristotle compares his view to that of Socrates. He says:

'This is why some say that all the virtues are forms of practical wisdom, and why Socrates in one respect was on the right track while in another he went astray; in thinking that all the virtues were forms of practical wisdom he was wrong, but in saying they implied practical wisdom, he was right' (1144b17–21).

His idea seems to be that one **requires** practical wisdom – an intellectual virtue – to be good, but that goodness itself isn't **identical** to it. Thus, human goodness can only be achieved if, in addition to having health and other external advantages, one possesses the moral virtues as well. Practical wisdom may well be the crucial element in a happy life – a life of doing well – but it requires the other virtues as well. He sums this up by saying: '... it is not possible to be good in the strict sense without practical wisdom, nor practically wise without moral virtue' (1144b30–32).

Akrasia

Suppose yourself to be practically wise in the sense Aristotle has explained. You are able to consider some situation, know the general truths appropriate to it and are also aware of the special features of the situation that, together with your general knowledge, allow you to act appropriately. Let us say, formulaically, that acting appropriately is doing A. In spite of all this, could it happen that, though you do possess the relevant practical wisdom, you fail to do A? Could it happen, for example, that some strong desire, or passion (such as anger), overpowers your practical knowledge? If this can happen – if you can know what is best and yet fail to do it because of some contrary pull – it will be said that you are weak-willed, incontinent, or, to use the Greek term, ‘akratic’.

As Aristotle notes, Socrates didn't think that *akrasia* in the above sense was possible. If an agent knew what was best in the full sense, the agent couldn't help but to do A. Failure to do A would be tantamount to ignorance, to not really knowing what was best. Aristotle doesn't want to accept the Socratic account, but he struggles to offer a different one. At several points, he suggests that the akratic agent might well know what is best, but that this knowledge is somehow rendered ineffective. Perhaps, he suggests, it is rather like someone who is drunk: such a person may well have knowledge, but be in no condition to exercise it. Aristotle also distinguishes (in the first chapter of Book VII) between *akrasia* and the virtue of temperance (which, in spite of recent associations, has nothing to do with abstinence from alcohol). Whereas a non-akratic (continent) agent will fight to resist the temptation of pleasure, desire and passion, a temperate agent somehow rises above any of these temptations.

The discussion of these matters in the opening chapters of Book VII have proved very important to the subject now known as ‘moral psychology’. This is the study of the context and sources of human actions, and it plays an important role in both the history and contemporary understanding of morality. For insofar as a main source of our actions – especially those relevant to morals – is knowledge, we get a picture of ethics that is different from one in which the sole or main sources are desire and passion. The issue of *akrasia* is one of a number which help to clarify this issue.

The contemplative life

Aristotle's account of the good for humankind seems fairly settled after Book VI: the moral virtues are instilled by training and habit, and these support, and are supported by, the deliberations of an acquired capacity for practical wisdom which lead to the right actions and choices in the many particular circumstances that occur in life. The aim of practical wisdom and its supporting virtues is a happy life, one that fully realises human capacities. (Chapter 6 of Book X summarises his overall view, though not in great detail.) Aristotle does show a degree of realism about such a life: in addition to practical wisdom and habits of virtue, one has to have a certain amount of luck. For having friends, goods and scope to realise one's plans is often outside our control.

The picture we get of Aristotle's recommended life is one in which persons exercise their abilities, not only to make wise choices and act on them, but also to have some degree of material, social and political status in the community. This conception of happiness is not one that will appeal to all readers – some views of the morally worthy life see it as in some sense its own reward, and as achievable without requiring goods and power. However, in Book X, Aristotle seems to take back some of what has gone before, and this has become a problem for generations of interpreters of the *Ethics*. Describing a life pursuing knowledge – a life of contemplation – he writes: ‘... for man, therefore, the life according to reason is best and pleasantest, since reason more than anything else *is* man. This life therefore is also the happiest’ (1178a6–9). At the very beginning of the next chapter, he notes: ‘the life in accordance with other kinds of virtue is happy’, but he now describes it as of ‘secondary’ value to the life of contemplation.

Perhaps it is no surprise that, like Plato, Aristotle comes down so firmly on the side of reason and contemplation. Many have felt that what he says in Book X is at the very least in tension with the conclusions – and the effort expended in reaching them – of the preceding books.

Hume

Introduction

David Hume (1711–76) was born and died in Edinburgh, but travelled extensively in the middle part of his life. He is regarded by most as the greatest philosopher who wrote in English, and by many as one of the three or four most important philosophers of all time. Both through his writings and his personality he influenced many French philosophers of the Enlightenment, and philosophers such as Immanuel Kant in Germany. Books I ('Of the Understanding') and II ('Of the Passions') of his *A Treatise of Human Nature* were published in 1739 (when he was 28) and Book III ('Of Morals') was published a year later. In addition to the *Treatise* (as we shall abbreviate the title of this work), Hume's philosophical writings include *An Enquiry Concerning Human Understanding* (1748) and *An Enquiry Concerning the Principles of Morals* (1751), as well as many other philosophical and literary essays. Especially important, and too controversial to be published in his lifetime, is *The Dialogues Concerning Natural Religion* (1779). In addition to his enormous philosophical output, during the 1750s Hume published a six-volume *History of England*, a work that had considerable popularity, contributing to Hume's income and thereby to his independence.

In Hume's *Treatise* – perhaps the most cited source of his moral views and the text for this chapter – one can isolate two aspects of his thought about morality. The first, sometimes thought of as a negative phase, offers a range of arguments aiming to show that morality could not be the product of reason. (See *Treatise*, III, I I.) However, though these arguments undoubtedly have a negative aspect, their upshot is an important positive thesis, one expressed by Hume in the often-cited words: 'morality is more properly felt than judged of'.

The second phase in Hume's thought builds on this claim, both defending it further and using it to construct a comprehensive picture of how human morality works. Hume's negative contention, and the arguments used to support it, have had a huge influence on moral theorists. The constructive project, sometimes described as 'moral naturalism', has been no less influential, though its influence has been perhaps more subtle.

Hume's views are not merely of historical interest: his ideas figure in many ways in contemporary work on morality, both within and outside philosophy. In studying Hume – in coming to understand both the negative and positive aspects of his thought – you are therefore engaged in moral philosophy itself, and not simply its history. Of

course, as should be true of the study of any philosopher, you should aim to achieve an accurate understanding of Hume's theses, while remaining critical of them.

A brief note here about the relationship between Hume's *Treatise* and his *An Enquiry Concerning the Principles of Morals*: as noted above, the latter was written some years after the *Treatise*, and Hume seems to have regarded it as his best work. There can be little doubt that it is more 'literary' than the *Treatise* – more polished and filled with rhetorical flourishes – but it lacks the directness and philosophical bite of the earlier work. Does it contain a substantially different account of morality? Some have taken the view that he merely softened the arguments and conclusions of the earlier work, so as to make *An Enquiry Concerning the Principles of Morals* more acceptable to a public which had been somewhat scandalised by his youthful *Treatise*. This is an unresolved question in Humean scholarship, and if you want to delve more deeply into Hume's views – though this is optional – I suggest you read *An Enquiry Concerning the Principles of Morals* and decide for yourself, and I have included some selected references to that work below.

Reading

Primary texts

Two well-known editions are:

Selby-Bigge, L.A. (ed.) *A Treatise of Human Nature*, revised by P.H. Niddich (Oxford: Clarendon Press, 1978) second edition [ISBN 9780198245889].

Norton, David Fate and Mary J. Norton (eds) *A Treatise of Human Nature*. Oxford Philosophical Texts (Oxford: Clarendon Press, 2000) [ISBN 9780198751724].

You can download the *Treatise* online from Project Gutenberg (www.gutenberg.org). Though this is an older edition and out of copyright, it should serve for this course. Note that you can also download *An Enquiry Concerning the Principles of Morals* from this same site.

To make your task easier, here are recommended selections from the *Treatise* most relevant to the course:

Book III, Part I, Sections I and II
Book III, Part II, Sections I, II, V, VI
Book III, Part III, Sections I, V, VI.

These are the core of Hume's positive account of morality. It might be useful too to have a look at Book II ('Of the Passions'). In particular:

Book II, Part I, Section I
Book II, Part III, Section III.

And here are some selections from *An Enquiry Concerning the Principles of Morals*:

Sections I, II, III, V, IX

Appendix (all Sections).

Recommended essential reading

Árdal, Páll 'Another Look at Hume's Account of Moral Evaluation', *Journal of the History of Philosophy*, 15, 1977, pp. 405–21.

* Baier, Annette 'Hume's Account of Social Artifice – Its Origins and Originality', *Ethics*, 98(4), 1988, pp.757–78.

Cohon, 'Hume's Moral Philosophy', *The Stanford Encyclopedia of Philosophy* (Fall 2010 edition), Edward N. Zalta (ed.), <http://plato.stanford.edu/archives/fall2010/entries/hume-moral/>

* Fricker, M. and S. Guttenplan *Reading Ethics*. (Oxford: Wiley-Blackwell, 2009) [ISBN 9781405124737] Chapter 3, pp.144–61.

Gauthier, David 'Artificial Virtues and the Sensible Knave', *Hume Studies*, 18(2), 1992, pp.401–27.

Korsgaard, Christine 'The General Point of View: Love and Moral Approval in Hume's Ethics', *Hume Studies*, 25, 1999, pp.3–41.

Mackie, J.L. *Hume's Moral Theory*. (London: Routledge, 1980) [ISBN 0710005253].

* Stroud, Barry *Hume*. (London: Routledge, 1988) [ISBN 0415036879] Chapters 7–9. (Chapter 8 in the VLE.)

Sturgeon, Nicholas 'Moral Skepticism and Moral Naturalism in Hume's Treatise', *Hume Studies*, 21, 2001, pp.3–83.

* Wiggins, David 'A Sensible Subjectivism?' in *Needs, Values, Truth*. (Oxford: Clarendon Press, 1998) third edition [ISBN 0198237197] pp.185–210.

Further reading

Blackburn, Simon *How to Read Hume*. (London: Granta, 2008) [ISBN 9781847080332].

Botros, Sophie *Hume, Reason and Morality: A Legacy of Contradiction*. (London and New York: Routledge, 2006) [ISBN 9780415331807].

Cohon, Rachel *Hume's Morality: Feeling and Fabrication*. (Oxford: Oxford University Press, 2008) [ISBN 9780199268443].

Harrison, Jonathan *Hume's Theory of Justice*. (Oxford: Clarendon Press, 1981) [ISBN 9780198246190].

Norton, David Fate and Jacqueline Taylor (eds) *The Cambridge Companion to Hume*. (Cambridge: Cambridge University Press, 2009) second edition [ISBN 9780521677349].

Morality and reason

In the *Treatise* (cited in what follows as 'T'), Hume presents a range of arguments purporting to show that our moral judgments are not based on our reasoning faculty, though two have garnered most of the attention. One depends on material Hume introduced in T, II, III, III, though the argument itself is in T, III, I, I, and one argument is very short and comes at the very end of T, III, I, I.

Understanding Hume's arguments requires first that you be clear about what he means by 'reason' and 'reasoning'. As he insisted in Book I of the *Treatise*, and repeated in Book III, reason is the faculty of the human mind

responsible for whatever knowledge we come to have; it is what we might now call the 'cognitive faculty'. I urge you to pay close attention to the rich detail of Hume's account, but one can summarise it this way: reason produces knowledge, when it does, either by a comparison of ideas in the mind or by causal and other linkages among these ideas. The first is responsible for mathematical and logical knowledge, the second for our contingent knowledge about how the world works.

Insisting that these two sources of potential knowledge exhaust the possibilities, Hume sets out to show that moral judgments cannot arise from either of these sources, and hence that morality cannot be understood as the product of our cognitive faculty.

The more extensive of the arguments Hume gives for this conclusion depends on an interim conclusion he takes himself to have established in T, II, III, III, namely that knowledge and belief – the output of the cognitive faculty of reason – are not in themselves capable of serving as motives to action. As he often puts it, reason is 'inert', and one has to look towards another human faculty – the seat of our passions and desires – to find what Hume takes to be the springs of human action. Leaning on this conclusion, Hume argues in T, III, I, I that it follows from the fact that our moral judgments **do** move us to act that they cannot themselves be the products of reason. In fact, Hume thinks this conclusion follows in several different ways from what is essentially the same argumentative material. (A discussion of Hume's texts and arguments is in Fricker and Guttenplan, 2009.)

The second argument is extremely short, and Hume presents it almost as an afterthought in his attack on the role of reason in morality. Hume begins by noting that the cognitive faculty of reason produces knowledge or belief about how things are. In shorthand, reason tells us things of the form: such-and-such is the case. But moral judgments, he notes, are not about what is the case, but about what ought to be the case, and Hume can see no way in which one could ever validly infer a judgement about what **ought** to be so from any number of premises, each telling us what **is** so.

Hume's two arguments have had enormous influence on philosophical writing about morality, though both are controversial. Arguing as it does that reason is inert – that it cannot move us to action – the first of the arguments figures not only in moral theorising but also in the more general project of understanding human action. The second seems to turn on certain linguistic features of moral judgments. Discussion of this argument has served to focus attention on the role of language in moral judgment. Hume himself said little explicitly about this role. The literature on both of these arguments is extensive, but the items of reading mentioned above, and the further reading they suggest, should help you understand them and the consequences they have had for work in ethics.

Moral sentiment

Having established to his satisfaction that reason is not the source of morality, Hume, rather more positively, introduces his own proposal (in T, III, I, II) about the real source of our judgments about virtue and vice, and hence about morality itself. This short section repays careful study, not least because it lays out the basic agenda for the remainder of Book III.

Hume claims that moral judgments, in particular those concerning virtue and vice, arise from the special kind of pleasure or pain that is aroused in us by witnessing or even merely contemplating human actions. He writes:

An action or sentiment, or character is virtuous or vicious; why? Because its view causes a pleasure or uneasiness of a particular kind. ... We do not infer a character to be virtuous because it pleases: But in feeling that it pleases after such a particular manner, we in effect feel that it is virtuous.

In saying this, Hume is aligning his discussion of morality with his discussion of the passions in Book II of the *Treatise*. There Hume offers an account of how pleasure and pain are intricately connected with a whole range of human passions, emotions, desires, sentiments and feelings. However, the main thing to keep in focus is that all of these mental states are said by Hume to share a special feature. Whereas belief and knowledge are the products of reason – the products of our cognitive faculty – pain and pleasure, and the sentiments with which they are connected, are at least potentially motivational. Using a mechanistic metaphor Hume is fond of, they are the **mainsprings** of human activity, pushing us or inclining us to act in a way that cognition alone could never manage.

There are certain immediate problems with this identification of virtue with feelings of pain and pleasure. For example, lots of things that have nothing to do with morality give us pleasure and, no less problematically, our judgments about what are vicious or virtuous characters often do not correlate with the strength of our feelings of pleasure or uneasiness. Hume faces these problems, but you must decide whether what he says is adequate. Still, having laid out his positive proposal about the source of our moral judgments, Hume takes his task to be only beginning. It is not enough, he argues, simply to assume that every action or character we come across will be assessable as virtuous or vicious (or perhaps as neither) by the consultation of our feelings of particular pleasure or uneasiness in respect of each such action or character. He writes:

... it is absurd to imagine, that in every particular instance, these sentiments are produced by an original quality and primary constitution. For as the number of our duties is, in a manner, infinite, it is impossible that our original instincts should extend to each of them.

This short and highly original argument sets the stage for the positive account, one which will stay faithful to the idea that morality is fundamentally a matter of feelings, but will bring some order to these feelings.

Natural and artificial virtues

Hume sees his task as describing in detail the basis on which our sentiments are founded. That is, he aims to discover the 'general principles' which govern the way in which our sentiments of pleasure and uneasiness are aroused by particular actions and characters. This sets the agenda of the positive phase of the *Treatise*, beginning at III, II, I. Fundamental to this task is Hume's distinction between what he calls the natural and artificial virtues.

The natural virtues are those it is reasonable to think we possess as part of our innate constitution; they are integral to human nature. In respect of the little argument cited above, they are the limited class of duties which are accounted for by our 'original instincts'. One example of this might be that of parents coming to the aid of their child. We have no trouble in seeing a disposition to act in this way as an original instinctive motive in human beings, and we have no trouble in further understanding that we might react with the appropriate kind of moral pleasure to those who display this disposition. In this way we can understand why there should be acts of parental concern – the motive to such acts is built into our natures – and we can understand why we regard the character trait which leads to such acts as virtuous – we are built so as to react in this way to a child being helped. But, as the passage cited above says, we cannot see all of morality as natural in this way: dispositions to behave morally are simply too varied for us plausibly to consider every one of them as innately given in our natures. For these – which Hume comes to describe as 'artificial' virtues – we must find some intelligible set of principles on which they are based. The basic principles themselves are natural – they are part of our innate endowment as human beings – but the virtues we come to recognise as built on these principles count for Hume as constructed, and in this sense, artificial.

The problems of justice

Primary among the artificial virtues is justice – the disposition to honour obligations and refrain from usurping others' property. In T, III, II, I Hume offers an argument meant to underpin his idea that at least some virtues must be artificial. This is the argument concerning the 'circularity' of thinking that the first motive to a virtuous act might be the recognition of the virtue such a motive would possess. Brief as it is, it is often considered difficult to grasp, and you should read it carefully. Aside from its intrinsic interest, it is an important first step for Hume's thinking to distinguish between natural and artificial

virtues. Once this step is appreciated, one can then more clearly see the problems which arise in connection with virtues like justice that Hume counts as artificial.

The following comparison of Hume's understanding of the natural and artificial virtues displays those problems:

Natural virtues (e.g. helping your child)	
<i>Questions</i>	<i>Answers</i>
What is our motive to undertake acts of this sort?	It is in human nature.
Why do we respond to them with moral pleasure?	It is in human nature.
Artificial virtues (e.g. justice)	
<i>Questions</i>	<i>Answers</i>
What is our motive to undertake acts of this sort?	?
Why do we respond to them with moral pleasure?	?

The very fact that there are two questions to be answered in respect of any virtue can be seen as a result of his circularity argument. Assuming that the answers he gives to these two questions in respect of the natural virtues is acceptable – and there are those who think this is far from clear – Hume thinks that there are real problems in trying to carry over these answers in respect of justice. (See T, III, III, I for more on natural virtues.) He writes:

... I suppose a person to have lent me a sum of money, on condition that it be restored in a few days; and also suppose, that after the expiration of the term agreed on, he demands the sum: I ask, What reason or motive have I to restore the money?

Given that we would be likely to accept that it would indeed be just to pay back the loan, Hume is here simply asking what motive would lead us to do this. In the pages that follow, he finds every answer to this question either too weak or downright implausible. He does make it clear that in our 'civilized state' – that is, after we have been trained in the ways of justice – we could provide some story about the motive. But his question is more fundamental: he is asking whether someone 'in his rude and more natural condition' would have the requisite motive, and he clearly thinks that the answer to this is problematic.

The second question in the table above asks not why someone would pay back the loan but rather why we, as witnesses, would find this discharge of an obligation morally pleasing. This is a more difficult question to appreciate, but here is one way. Suppose that the motive for paying back the loan is that the borrower is afraid of losing his reputation, or is simply afraid of harms that the

lender is in a position to inflict (suppose that the lender has a gang of henchmen ready to pounce). Given that the moral pleasure we feel on seeing, for example, a parent helping a child is something quite specific to certain kinds of act – and Hume says, it is the very virtue itself – would it be plausible to imagine our having this kind of pleasure when we witness an act done out of self-interested concern for one's own reputation or fear of bodily harm? Hume thinks not, and he sees the task ahead as finding plausible ways to answer the two queries in the above table.

Constructing justice

At the very beginning of T, III, II, II Hume sets about answering these two queries. He begins by describing what he takes to be the origins of human society, and the constraints under which it came into being. He begins by noting that human beings have 'numberless necessities' and only 'slender means' of satisfying them when acting individually. He concludes: 'It is by society alone, he is able to supply his defects and raise himself up to an equality with his fellow-creatures.' While this is something that is clear enough to anyone who thinks the matter through, Hume also contends that mere thought would not suffice to establish the kind of social conventions governing justice and property rights needed to achieve this. Moreover, he cites a number of impulses that make for further difficulties: human beings are typically self-interested and when they do show other-directed interest, it is mostly to their family and friends. Neither of these makes it easy to see how a smoothly functioning society which puts common interest at its centre could be established.

The predicament that Hume imagines is richly described, and he makes it sound inescapable. But he does finally suggest a way in which self-interest can be overcome and social (and moral) conventions established. His opening gambit is expressed in this way: 'There is no passion, therefore, capable of controlling the interested affection, but the very affection itself, by an alteration of its direction.'

The rest of the story comes in several stages that are intertwined in Hume's text. Separating them and, in outline, it goes as follows:

1. In the small societies which are bound to form at the beginning of the process of socialisation, it will be obvious to the whole community when one of its members pursues self-interest at the expense of the interests of others, and each such act will be punished by others who are thereby harmed. For this reason, it will be obvious to each member of the community that there is a self-interested reason (avoiding retribution from others) to avoid acts that are unreasonably selfish.

2. In this small community there comes to be an implicit agreement – what Hume calls a ‘convention’ – that one will desist from acts that harm others’ interests if they desist from harming yours. Hume likens this kind of convention to the way in which two rowers each pull on the oars, thereby getting the boat to move in the right direction, without either of them making an explicit promise to the other to do so.
3. These first two stages show how self-interest can work as a motive to acting justly when there is ‘an alteration of its direction’. In other places, Hume speaks of this as oblique self-interest. This story is intended to answer the first of the questions in the table above, albeit in the context of a small community. In a larger community, someone might well get away with acting in an unrestrained, self-interested way, and would thereby be what is often called a ‘freeloader’ on those members of the community who stick to the conventional rules. Moreover, it doesn’t deal with the second of the questions. That is, it doesn’t explain why we come to think of acting on this convention – something that is basically self-interested – as virtuous.
4. Meeting the two challenges requires us to think through what is established in (2) and it requires Hume to introduce the notion of sympathy. Once the convention is established in (2), the acts performed in accordance with the conventions of justice can be seen to benefit each member of society and the society as a whole. When we witness such benefit – even if we are not the recipient of it at the time – it strikes a chord with us, one that leads us to feel the special sort of moral pleasure that Hume thinks is at the foundation of morality. One should think here of an almost mechanical reaction: we see the act and feel the pleasure rather in the way that a tuning fork responds to the sound of another one being struck.

It is important to note that the pleasure we feel in this context is not itself the motivation to adhere to the convention. The latter is down to oblique self-interest. But the pleasure is recognisably the same as that we feel in the case of natural virtues – through the mechanism of sympathy it is part of human nature – and that is enough to make adhering to the conventions of justice count as virtuous.

However, when the society grows and freeloaders become a possibility, the conventions of justice are kept in place – we come to have an instilled motive to abide by the convention – by a kind of training or socialisation that is attuned to the fact that we do get moral pleasure in the above way. Thus, though the moral pleasure we feel at others benefiting from adherence to the convention is not strong enough to guarantee adherence, it is part of the explanation of the establishment of the training we receive and which does provide a relevant and strong enough

motive. The need for this process of socialisation is the reason Hume thinks justice an artificial virtue.

Problems with artificial virtue

The story Hume tells is ingenious, but it is not without problems. Most of them centre on his account of artificial virtue, a crucial notion in his account. The first and main difficulty concerns the establishment of the training, the source of our motivation to behave according to the conventions of justice. One way to see this difficulty is to ask yourself what is the guarantee that the training will take the form it does? From the point of view of a reflective member of a large society, what would be best – most in such a person’s self-interest – would be if all the **other** members of the society acted in accordance with the instilled motive to justice. Assuming some degree of cunning and power, such a person would then be able pursue his or her self-interest outside of the agreement that bound the others. Admittedly, this is merely a hypothetical individual, but given that anyone could be such a person, how can we be sure that the training would take the form it does in the first place and would become established in the transition from small to large society? Or put another way: if you reflect on your own motives and come to see that your motive to justice is ‘artificial’ in the way Hume describes, what is to prevent you from thinking yourself not really obligated by it? Hume somehow thinks that the rather weak pleasure we feel when others benefit is enough to hold the agreement in place, even if it is not the motive for it. But couldn’t one recognise this pleasure, recognise too that one was only conditioned to act justly, but then even so pursue the stronger natural motive of self-interest? (You should read T, III, II, V in connection with this issue.)

Another problem concerns the plausibility of counting the sympathy-induced pleasure we feel at another’s benefit as of the same kind as the moral pleasure of a naturally virtuous act like helping one’s offspring. Remember that just acts produce their benefit by satisfying someone’s self-interest. While it might be plausible to think this affects bystanders positively, is it really plausible to think it leads them to feel moral pleasure? Think of hearing that someone has won the lottery: if we are not of an envious disposition, this might affect us positively, but we would not ordinarily think that what we felt was a peculiarly moral pleasure.

Problems with natural virtue

Aside from the issue of whether anything as complicated as human motivation and reaction is wholly ‘natural’, there are special problems with Hume’s account of moral sentiments. He urges us to see moral pleasure as special, just as the pleasure of wine differs from other sorts of

pleasure. While we might agree with Hume here, we often think that the difference lies not in the nature of the feeling but in its object. Also, as Hume himself points out, moral sentiment can be weak or calm (imagine merely reading about some injustice that happened a long time ago) or strong (imagine someone cheating you out of your life savings). Yet even if you have been cheated in this way, you are unlikely to rank that injustice as greater than an unjust act such as some massacre of innocents that happened a long time ago. Our assessments of relative moral importance don't seem to march in step with the strength of our feelings. As noted, Hume recognises these problems, but you have to decide whether he deals with them adequately.

Kant

Introduction

Kant (1724–1804) was born in the city of Königsberg in East Prussia, now the Russian city of Kaliningrad. Having completed his studies, he spent a number of years tutoring and giving lectures in the University of Königsberg. This work was then typically so poorly paid that he lived in a state of constant poverty until he was appointed Professor of Logic and Metaphysics in 1770. Aside from his single-minded devotion to academic work, what is perhaps most remarkable is that, in spite of his familiarity with scientific and philosophical ideas coming from everywhere in Europe, he never travelled, spending his whole life in or very near Königsberg.

There can be little doubt that Kant is the most important Modern philosopher in the Western tradition, and it wouldn't be difficult to find those who regard him as no less important than the Ancient philosophers Plato and Aristotle. The breadth of his work is astounding: even before he wrote those philosophical works for which he is now best known, he lectured on many scientific topics and, advancing as he did the view that there were galaxies beyond our Milky Way, he is rightly regarded by astronomers as a pioneer in our theoretical understanding of the cosmos. His philosophical work covers metaphysics, epistemology, aesthetics, morality and politics, and in almost every one of these fields, his ideas continue to be hugely influential.

Following his professorial appointment, Kant set about rethinking the whole of philosophy, and, more particularly, the role of philosophy in our understanding of science. After a period of nearly ten years during which he published very little, he produced *The Critique of Pure Reason* (1781), undoubtedly his most important work, and followed this with a staggering number of further publications. Included here are the *Critique of Judgement* (1790), the *Critique of Practical Reason* (1788), a second edition of the *Critique of Pure Reason* (1787) and the *Foundations of the Metaphysics of Morals* (1785). It is this last short work which is the text for this chapter.

As suggested in the titles of Kant's works in his prolific later period (note that he was 57 when the *Critique of Pure Reason* was first published), he thought of himself as engaged in what he called a 'critical revolution'. Explaining what he meant by this in any detail is not possible here, but a brief remark is worth giving. Kant thought that giving a firm foundation to human knowledge required us to turn our critical philosophical attention onto the faculty

of reason itself. Whereas most thinkers had presumed that reason confronts a reality that is wholly independent of us, and thereby produces such scientific and moral understanding as we have, Kant suggested that we should think of reality as dependent on the conceptual structures that reason brings to the task of producing this understanding. Thus, the world describable by ordinary empirical and scientific understanding, in being dependent in part on the concepts we deploy, becomes knowable in a profound way – one whose possibility had eluded philosophers before Kant. However, in cases where reason attempts to speculate about the nature of a supposed reality that lies beyond one constructed from our concepts, it is bound to fail. Hence, the 'critique' of pure reason that gives Kant's main work its title.

The consequences of this critical revolution for scientific understanding are manifest. Just to take a single (schematically described) example, think of philosophical attempts to give a foundation to our judgments of cause and effect. For philosophers like Hume, the idea that the world can be known to be governed by causation is deeply problematic; indeed, Hume can make it seem simply irrational even to believe that the world contains causal regularities. By insisting that **cause** is a concept imposed by reason – that this concept is partly responsible for the empirical world being the way it is – we can have firm grounds for finding causal regularities. Moreover, these grounds are a priori, or purely philosophical: we discover that causality reigns by looking into the structure of our concepts.

Nor is Kant's critical stance limited to scientific understanding. In the Preface to the *Foundations of the Metaphysics of Morals* (hereafter FMM) Kant insists that we can, and indeed must, proceed by an a priori investigation of the concepts that constitute the phenomenon of morality. He writes: '... all moral philosophy rests solely on its pure [i.e. a priori] part. When applied to man, it does not borrow the least thing from the knowledge of man himself (anthropology), but gives laws a priori to him as a rational being.' This strong, and to some counterintuitive, assertion is at the heart of Kantian moral theory. Kant is here claiming that even if we think of morality as governing **human** actions and relationships, it can only be understood properly when we understand it as having a wholly **rational** (i.e. a priori) basis. The First Section of FMM sets out to clarify and support this claim. (Note: In some English editions, FMM is called the *Groundwork of the Metaphysics of Morals*.)

In what follows, I shall highlight the most important argumentative moves that Kant makes in FMM, but there is no substitute for a careful reading of the intricate detail of his argument. As should be clear when you do this reading, Kant doesn't waste words: even what might at first seem like an aside or rhetorical flourish, tends in the end to push his arguments forward. Note too that I shall be more liberal with comments about the First Section of FMM, and will give less space to the other two sections. Kant's view of morality can seem so different from that of other philosophers, including Hume, that it is important to get the shape of the account right from the beginning. (It could be argued that Kant's account shares certain important features with Plato's, but making this out would be a long and difficult exercise.)

Reading

Primary text

In my explanatory text, I have used the translation by Lewis White Beck. This translation was originally published by Bobbs-Merrill in 1959 and is also used in:

Wolff, Robert Paul (ed.) *Kant's Foundations of the Metaphysics of Morals: Text and Commentary*. (Indianapolis, IN: Bobbs-Merrill, 1969).

In other English translations, FMM is called the *Groundwork of the Metaphysics of Morals*, and a good recent translation is:

Korsgaard, Christine M. (ed.) with translation by Mary Gregor and Jens Timmermann *Kant: Groundwork of the Metaphysics of Morals*. Cambridge Texts in the History of Philosophy. (Cambridge: Cambridge University Press, 1998) [ISBN 0521626951].

An older translation by T.K. Abbott, which is certainly suitable for this course, is available on the internet from Project Gutenberg (www.gutenberg.org).

Recommended essential reading

- * Darwall, Stephen 'Kantian Practical Reason Defended', *Ethics*, 96(1), 1985, pp.89–99.
- * Guyer, Paul 'The Form and Matter of the Categorical Imperative' in his *Kant's System of Nature and Freedom*. (Oxford: Oxford University Press, 2005) [ISBN 9780199273478].
- * Harrison, J. 'Kant's Examples of the First Formulation of the Categorical Imperative', *The Philosophical Quarterly*, 7(2), 1957, pp.50–62.
- * Kemp, J. 'Kant's Examples of the Categorical Imperative', *The Philosophical Quarterly*, 8(30), 1958, pp.63–71.
- * Korsgaard, Christine 'Kant's Analysis of Obligation: The Argument of *Groundwork* I' in her *Creating the Kingdom of Ends*. (New York: Cambridge University Press, 1996) [ISBN 0521496446].
- * O'Neill, O. 'Reason and Autonomy in Grundlegung III' in her *Constructions of Reason: Explorations of Kant's Practical Philosophy*. (Cambridge: Cambridge University Press, 1989) [ISBN 0521381215] pp.51–65.

* Wood, A.W. 'What is Kantian Ethics' in Wood, A. (ed.) *Kant: Groundwork for the Metaphysics of Morals*. (New Haven, CT: Yale University Press, 2002) [ISBN 0300094876] pp.157–82.

* Wood, A.W. 'Kant's Formulations of the Moral Law' in Bird, Graham (ed.) *A Companion to Kant*. (Oxford: Wiley-Blackwell, 2006) [ISBN 9781405111973].

Further reading

Allison, Henry *Kant's Theory of Freedom*. (New York: Cambridge University Press, 1990) [ISBN 0521387086].

Baron, Marcia *Kantian Ethics Almost Without Apology*. (Ithaca, NY: Cornell University Press, 1995) [ISBN 0801428297].

Guyer, P. *Kant's System of Nature and Freedom*. (Oxford: Oxford University Press, 2005) [ISBN 9780199273478].

Korsgaard, C. *Creating the Kingdom of Ends*. (New York: Cambridge University Press, 1996) [ISBN 0521499623].

O'Neill, O. *Constructions of Reason: Explorations of Kant's Practical Philosophy*. (Cambridge: Cambridge University Press, 1989) [ISBN 0521388163].

Timmerman, J. (ed.) *Kant's Groundwork of the Metaphysics of Morals: A Critical Guide*. (Cambridge: Cambridge University Press, 2010) [ISBN 9780521175081].

Wood, A.W. *Kant's Ethical Thought*. (New York: Cambridge University Press, 1999) [ISBN 052164836X].

The principles of duty

Kant opens the First Section with words that are widely quoted, though not always wholly understood: 'Nothing in the world – indeed nothing even beyond the world – can be called good without qualification except a good will.' He then goes on to explain why other human character traits – intelligence, wit, judgment, courage, resolution, perseverance – can certainly be useful and morally good, and why gifts of fortune – power, riches, honour, health and happiness can aid, but never constitute, goodness. For we can imagine each of them as pressed into service for ends that we would not recognise as worthy. In short, none of them has the unconditional worth of a genuinely good will.

These first paragraphs are an opening gambit. Having insisted that the only thing unconditionally good is a good will, Kant next, subtly but crucially, seeks to establish a second feature of the good will: it is, and can only be, the product of human reason or rationality. The supporting material here is interesting, but can seem weak: essentially Kant suggests that reason must surely have a purpose, but as it is itself a poor guide to the satisfaction of the range of desires and needs we all have and which can be summed up as the pursuit of happiness, we cannot think that reason's purpose is one of helping us in that pursuit. So what is the purpose of human rationality? Kant writes: 'As nature has elsewhere distributed capacities suitable to the functions they are to perform, reason's proper function must be to produce a will good in itself and not only good as a means...'

I mentioned that these opening pages are argumentatively weak, but I don't think that this matters. For Kant's aim here is to encourage rather than convince the reader. The real arguments come just after he introduces the notion of duty, and they have a typically Kantian structure. He asks us to consider the principles (propositions) that figure in the use of the concept of duty in its employment in everyday morality. Kant is in this way giving us an a priori analysis of this important moral notion; he is thus working backwards from our ordinary moral intuitions about duty to those principles which underlie them.

The examples he uses to prompt our intuitions are: (1) that of a dealer who has a duty to charge the same price, even to the inexperienced purchaser; (2) that of an agent – perhaps one tired of life – who has a duty nonetheless to keep on living; and (3) that of an agent who has a duty to be beneficent, whether or not he cares about others. In each case, one can think of motives which would bring about the same results: the dealer might think 'honesty is the best policy'; the would-be suicide might simply cling to life and fear death, and we might well engage in beneficence because of the sympathy we might feel for others in need or the reputation it brings. However, Kant insists that insofar as the latter sorts of motive are operative, we would not regard the agent in each case as acting out of duty, and hence would not regard such a person as acting for purely moral reasons. From this, he claims that the first proposition of morality follows: a dutiful act has genuine moral worth – is a real example of the good will – only if it is done out of a sense of duty and not for some other motive.

The second proposition is that the moral worth of a dutiful act lies not in anything one might hope to achieve by it, but rather in the principle (the Kantian expression is 'maxim') by which one's will to do the act is determined. This proposition is said to follow directly from the considerations that led to the first. For if we can rule out the possibility that some hoped-for end is to be achieved by a morally worthy act, all that remains seems to be a concern to act out of duty as such.

The third proposition is: 'duty is the necessity of an action executed from respect for law'. Kant thinks that this follows from the first two, but in order to understand why this might be so, it is important to be clear about what he means both by 'necessity of an action' and 'respect for law'.

In this context, Kant understands 'law' to be a moral requirement which would be recognised as such by any rational being. That such a requirement is aptly describable as a law – a universally true generalisation – follows from the fact that it would be recognised by **any** rational being. However, though human beings have reason, and are thus capable of being rational agents, we are also pulled in many directions by our desires and needs. Using Kant's terminology, these 'inclinations' may sometimes pull in the same direction as our moral requirements, but in

many cases, they oppose them. In the latter sort of case, Kant thinks that we will feel the moral law as exercising a demand or constraint on us – he also calls it an 'imperative'. Because we are rational, we recognise the moral law, but because we are human creatures with desires and needs, we feel this law as constraining. A human act, then, can be recognised as having moral worth when the force of the moral law – its necessity – constitutes our reason for undertaking it. Think here again of the dealer who charges an inexperienced customer fairly. If he does so because he recognises that the moral law demands such behaviour, the act is one displaying moral worth. If, however, he does so because he wants to keep his business reputation, or because he happens to like this particular customer, then his act is not done out of respect for the moral law and is not one of duty. Of course, Kant never says that in the latter cases what the dealer does is morally bad; it is rather that in such cases the act is not a proper example of moral action.

Because the terminology may be unfamiliar, Kant's conception of moral worth is not easy to take in at first reading. It is crucial to remember, though, that Kant regards his conception, not as in any sense technical, but as already contained in our everyday moral intuitions. As part of showing this, he asks us to consider the question: 'May I, in distress, make a promise with the intention not to keep it?' He notes first that this question has a prudential reading: it might be in your interest to make such a promise, perhaps because you need some money that can only be obtained via such a deceptive promise. However, he believes – I think correctly – that when the question is taken morally, there can be no doubt about the answer: it would be contrary to the moral duty we owe to each other to make such a promise. He thinks that his terminology captures this intuition perfectly: our moral duties are those we can only appreciate when we put on one side human desires and interests, and ask ourselves what is required by the moral law. Moreover, he thinks that this conception of duty is one that we arrive at by a priori means – that is, by an **analysis** of everyday moral intuitions.

The categorical imperative

I have spent some time discussing the materials introduced in the First Section of FMM, because it will help with the important Second Section. Though Kant introduces new concepts and the discussion is more sophisticated in the Second Section, he explicitly leans on the main points of the First Section.

The first few pages consider what Kant calls 'popular moral philosophy'. He has in mind here, not the everyday intuitions that figured in the First Section, but rather the attempts of philosophers to account for those intuitions by constructing morality on the basis of human desires, needs and interests. Nor does he think we should be

surprised by these philosophical projects, given how difficult it is to be sure that any given morally worthy act is done purely out of a respect for the moral law. He writes: 'There have always been philosophers who for this reason have absolutely denied the reality of this disposition in human actions [a disposition to act out of respect for the moral law], attributing everything to more or less refined self-love.' He doesn't mention him, but Hume could well be one of those he has in mind. Opposing these philosophers, Kant repeats his view that only an analytical, a priori, investigation can reveal the true nature of morality. Whereas in the First Section he tried to show this by an analysis of everyday moral intuitions, the task of the Second Section is that of arriving at the same place by a more theoretical investigation of reason and action. He writes: 'In order to make this advance, we must follow and clearly present the practical faculty of reason from its universal rules of determination to the point where the concept of duty arises from it.'

Beginning with the idea that 'everything in nature works according to laws' – where of course these 'laws' include physical laws of nature – he notes straightaway that there is something special about the way in which rational beings fall under laws. Rational beings such as human agents act not merely according to laws – as would, say, a physical object – but according to their **conception** of laws. Rational agents in this way employ their faculty of reason in a practical (i.e. active) sense.

Kant then notes: 'The conception of an objective principle [i.e. a law] so far as it constrains a will, is a command (of reason) and the formula of this command is called an **imperative**.' And he goes on to consider different sorts of imperative. While his methods for doing so remain controversial, Kant then distinguishes between hypothetical and categorical imperatives. This distinction is based on the way in which the relevant imperatives command our wills. A hypothetical imperative attains the status of a command by virtue of our having some end that could be achieved by obeying it. Consider, for example, this command: 'if you want to be healthy, eat broccoli.' (Note by the way that it is of the form 'if... then'; and this is no doubt the reason Kant thinks of these kinds of imperatives as 'hypothetical'; even though the idea itself doesn't seem to absolutely require the 'if... then' form.) Who might find their will engaged by this command? Well, someone who wanted to be healthy. If you had no interest in your health, then this particular imperative might well be true, but would be of no interest to you. So all hypothetical imperatives seem to command our wills only insofar as we share the purpose or end on which they are based.

Consider next an imperative which has no suggested benefit but is just a direct requirement, e.g. **do not make a lying promise**. The commanding nature of this imperative cannot come from some end or purpose on

which it is based, because it has no such backing. There is no 'if'-clause hidden here, suggesting, for example, that making a lying promise will ruin your reputation or lead to even worse consequences. That is what it means for this imperative to be called 'categorical'.

Kant's view is that, as the above example suggests, the requirements of morality are all categorical imperatives. On the one hand, this allows Kant to fill in the philosophical picture of practical reason so that we end up saying many of the same things about duty as were evident in the First Section, and there will be more about this shortly. On the other hand, this way of thinking of moral duties raises an immediate and fundamental question: what reason do we have to think that categorical imperatives actually can command the will of rational agents? In other words, what reason do we have for thinking that what are called 'categorical imperatives' actually have *imperative* force? Kant's own way of asking this question is: how is the categorical imperative possible? However one asks this question, it is certainly crucial, for if the answer is negative, then Kant's idea of morality – and remember, he has argued that it is the common idea too – would be empty. There would simply be nothing in the world corresponding to what we had thought of as morality.

Kant's attempt to describe how the categorical imperative is possible comes in the complex and rich Third Section. The remainder of the Second Section consists in the further analysis of the idea of the categorical imperative, the main lines of which I shall now describe.

Given that a categorical imperative appeals to no further end or purpose, every such imperative will command, when it does, in the same way. To take our example, if you ask why you ought not to make a lying promise, the only possible answer Kant envisages is: because it is my duty and hence I am fulfilling it out of respect for the moral law. Since this is the answer that he thinks you should give in connection with any other example of a duty, Kant concludes: 'There is, therefore, only one categorical imperative', and he states it in these famous words:

Act only according to that maxim by which you can at the same time will that it should become a universal law.

This is generally known as the 'first formulation' of the categorical imperative, and Kant then goes on to give four examples of duties which are meant to illustrate this formula. (Note that the notion of a 'maxim', which we have come across earlier, is a somewhat technical term for Kant. You should try to get a sense of it by looking it up in various of the accounts given in the reading list.)

The examples are: Do not take your own life even when you are in despair. Do not make a lying promise even if you will benefit from it. Do cultivate your talents even when you have no specific need to do so. Do help others in need even when you have no inclination to do so.

Many commentators have thought that Kant's discussion of these examples is weak in various ways; some even describe them as 'Kant's notorious examples'. There are two interrelated questions that should figure in your reading of these examples: what is the exact role of the formulation of the categorical imperative in respect of them?, and where do these specific duties come from in the first place?

With the first formulation of the categorical imperative, Kant takes himself to have achieved the basic aim of the Second Section. He has shown that the only kind of imperative which could command the will of a rational agent is by its very nature one that commands all rational agents. Further, he claims that the moral duties that figure in everyday moral intuition are themselves best understood as falling under the categorical imperative. In sum, Kant takes himself to have established that practical reason – the determination of a rational agent's will – coincides with our intuitions about duty. Or, put another way, this means that the good will described at the beginning of the First Section is none other than the will of a rational agent. (Towards the end of the Second Section Kant explicitly returns to this claim.)

These equivalences are profound and even surprising. For they imply that morality is itself simply the product of a will acting under the guidance of reason; that is, under the guidance of the categorical imperative. But rather than stopping there, Kant takes this thought further. Asking whether there could be something the existence of which had absolute worth, Kant answers: '... man and, in general, every rational being exists as an end in himself and not merely as a means to be arbitrarily used by this or that will'. With this idea of a being of absolute worth – an end in itself – Kant produces a second formulation of the categorical imperative:

Act so that you treat humanity, whether in your own person or in that of another, always as an end and never as a means only.

He takes this to be effectively equivalent to the first formulation, and proceeds to re-discuss his four examples using it as the governing principle.

This 'formula of humanity', as this second version is often called, tends to be the one most cited. It seems clear enough what it means to use someone as a means only – think of a factory owner who cares only about how many units workers produce – but the notion of a human being as 'an end in itself' is elusive, even if it sounds somehow right. Some hint about it might be gleaned from the two further formulations of the categorical imperative.

One is the principle that every human will is a will giving universal laws, and another is put this way: Act according to the maxims of a universally legislative member of a merely potential kingdom of ends. Both of these introduce the

idea of a rational agent as not merely subject to universal laws, but making them. This is of fundamental importance both to our understanding of human beings as ends, and to the material in Section Three.

The second of these formulations introduces the notion of a 'kingdom of ends', and it is worth finishing off our discussion of the Second Section by looking more closely at this notion and its context. Additionally, this discussion will serve as an appropriate introduction to Section Three.

Kant claims that human agents are ends in themselves, and also that one form of the categorical imperative sees us as possessing wills who make, rather than just obey, universal laws. These claims invite one to consider a community of such beings, and this is what Kant has in mind by the 'kingdom of ends'. In such a community, all members, in giving laws to themselves, are at the same time legislating for everyone. Why so? The laws to which my will is subject are by definition universal. Were the determinants of my will anything less than universal, they wouldn't be laws and wouldn't apply to everyone. Here is an example to make the contrast: suppose that I desire a holiday in Greece. This desire has the potential to influence my will, but insofar as it does, this is not something that I could for a moment think of as also applying to the wills of others.

There is no reason to think the desire to holiday in Greece is universal. However, in recognising my duty to help others, my will is determined by a categorical imperative, and this determination is not based on any personal desire, but rather on the universal law constitutive of that duty. Moreover, because this universal law is not merely one I obey, it is one that I legislate for myself and, in so doing, also legislate for everyone else. Kant describes as 'autonomous' a will that is thereby self-legislating, and he reserves the term 'heteronomous' for a will subject to personal desires, needs and inclinations.

A kingdom or community of ends in themselves (i.e. rational beings) would be a community in which each member is autonomous or self-legislating. And because the laws of such legislation are universal, they would apply to all members of the community and thus the kingdom of ends would be fully harmonious. There could be no conflict in such a kingdom. (Though this cannot be developed here, there is a lot in common between Kant's picture here and the notion of the general will that was at the centre of Rousseau's political philosophy. Nor is this coincidence: Rousseau's works were acknowledged by Kant as of the first importance.)

Freedom and the categorical imperative

The central notion discussed in the Third Section of FMM is freedom. In the opening paragraph, Kant brushes aside what he calls the negative idea of freedom – the idea that one is free when not influenced by outside causes – in favour of a more positive formulation: freedom is having one's will determined by laws one gives to oneself. As our discussion of various formulations of the categorical imperative suggests, this way of defining freedom seems to link it closely with morality. In fact, for Kant the link is more than merely close. He writes: 'A free will and a will under moral laws are identical.'

The consequences of this identity are both profound and controversial. Kant is not merely saying something ordinarily regarded as true: that we are morally responsible only for those acts we engage in freely. Instead, he is claiming that the possibility of acting morally is **one and the same** as the possibility of acting freely, and vice versa, so that a free act is itself a moral one. Moreover, Kant recognises that we can only be sure that anything corresponds to our idea of morality if we can show, or have good reason to believe, that we are free in the Kantian sense of our being self-legislating beings. So, a great deal hangs on the discussion and arguments in this Third Section.

The identity that Kant claims here is something arrived at by an analysis of the notions of the good will, a will subject to the categorical imperative, and his positive definition of freedom as a will that legislates for itself. By 'analysis' Kant of course means a process of a priori deliberation. What he claims is that if you examine the notion of the good will, you will see that it is a will guided by the categorical imperative, and also that this link is one we can make via an understanding of freedom. However, the very fact that these notions are analytically connected shows that we cannot use them to demonstrate, in Kant's words, that the categorical imperative is possible. Put another way: an analysis of our notions of morality and freedom shows how they are connected but cannot by itself show that morality has any reality.

The discussion of freedom that figures in Section Three is thus the pivot on which Kant's defence of morality rests. In speaking about morality – and in acting morally – we presuppose that we are free, but until and unless we can demonstrate the reality of that freedom, it is open to someone to think that morality is empty. He sums this predicament as follows:

We assume that we are free in the order of efficient causes [the causal network describable by empirical science which governs all things and creatures] so that we can conceive of ourselves as subject to moral

laws in the order of ends. And then we think of ourselves as subject to these laws because we have ascribed freedom of the will to ourselves. This is circular because freedom and self-legislation of the will are both autonomy and thus are reciprocal concepts, and for that reason one of them cannot be used to explain the other and to furnish a ground for it.

All is not lost, however. Kant begins to address this circularity, writing:

One recourse, however, remains open to us, namely, to inquire whether we do not assume a different standpoint when we think of ourselves as causes a priori efficient through freedom from that which we occupy when we conceive of ourselves in the light of our actions as effects which we see before our eyes.

The story that Kant then goes on to tell has been deeply controversial, and many think unsatisfying. Moreover, it is a story that appeals at the most fundamental level to Kant's metaphysical and epistemological views. It is also one that figures in some guise in many discussions of free will.

As suggested above, Kant's basic idea is that we can adopt two standpoints when we think about ourselves. On the one hand, we can think of ourselves as capable of initiating actions, as being free in the way required for morality. On the other hand, we can think of ourselves as subject to the pushes and pulls of empirical causes, those that are physical and also those that are psychological, arising as they do from our desires, needs and interests. Kant goes on to anchor this possibility of a double standpoint in the context of his larger philosophical project.

In this project Kant distinguishes between the world which is knowable because partly constituted by our own concepts, and a realm that lies beyond – a realm of things as they are in themselves. As noted in the first section of this chapter, Kant thinks that we are tempted by our faculty of reason to think we can know about things in themselves – that we can know about what transcends our understanding – but the centrepiece of Kant's critical revolution is that reason needs to be reined in when it is so tempted. Does this mean that we cannot even speculate about things in themselves? One would have thought so, for any such speculation could never be so much as evaluated for truth, so it is difficult to see what point it could have. But when he canvasses the idea of two standpoints, Kant does engage in rather a lot of speculation. In particular, he suggests that one special item in the transcendent realm is a self which grounds the possibility of the standpoint from which we view our actions as free. The other standpoint is grounded on our

empirical self, which is the locus of our desires, needs and interests.

Isn't there a tension, if not an outright incompatibility, between the two standpoints? And, if so, doesn't one have the right to ask which of the standpoints is correct? Finally, and most importantly, given that the two-standpoints account seems intended to underpin the reality of the categorical imperative and hence morality, does this talk of standpoints really do the trick? These are questions Kant puts to himself, and it is far from clear that his answers are satisfactory. Nor is he completely assured about this himself, as witnessed in the concluding paragraph of FMM:

Therefore reason restlessly seeks the unconditionally necessary and sees itself compelled to assume it, though it has no means by which to make it comprehensible and is happy enough if it can only discover the concept which is consistent with the presupposition.

Critical explorations

Kant is not an easy philosopher, and though FMM is more accessible than many other of his works, it is demanding nonetheless. Of the first importance, then, is your working through the text and coming to understand both the shape of Kant's account of morality and the detail which fills in this shape.

Aside from understanding what Kant said, there are a number of different aspects of his views which you could profitably pursue in more depth, making special use here of the essential secondary reading.

Some areas you should explore are:

The purpose of Kant's categorical imperative. Does he intend it as a principle from which one can directly discern one's duties? Some have thought so, and accused Kant of a kind of formalism about morality. Perhaps the categorical imperative (in all of its forms) is not so much the source of our actual duties, as it is an explanation of what a duty is.

Are the different formulations of the categorical imperative actually equivalent in any sense, as Kant suggests? If not, which of them is best suited for his purposes?

Is his discussion of the four examples – a discussion which crops up twice in the Second Section – convincing?

Another area worth looking into is his distinction between hypothetical and categorical imperatives. The labelling here seems to come from the form of these imperatives, but the significance of the distinction seems to go well beyond this form.

As has been suggested already, the Kantian idea of freedom and its role in relation to morality is controversial. Can it really be the case that acting freely and acting morally are one and the same?

In trying to reconcile freedom and causality, Kant calls on his account of two standpoints. Does the existence of these standpoints help here, and does he make them plausible?

Mill

Introduction

John Stuart Mill was born in London in 1806 and died in Avignon in 1873. His Scottish father, James Mill, was a distinguished writer and civil servant who, with Jeremy Bentham, was deeply involved in the political reform movement of the 1830s. James Mill and Bentham arranged for John Stuart Mill to be carefully educated, without what they saw as distracting contact with companions of his own age, so as to carry on the work of this movement. In his *Autobiography*, John Stuart Mill described his education – which most would regard as extraordinarily intensive – as one suitable for any normal child. That said, he also records a period of extreme depression that he suffered as a young man, and many now regard that depression as the direct result of his lack of anything one would count as a childhood. (Aside from its relevance to Mill's thought, the *Autobiography* is an interesting account of his political and social context. Moreover, not counting very recent philosophers, proper autobiographies are rather rare in philosophy.)

A central philosophical view of the reformist movement of James Mill and Bentham was known as 'utilitarianism', and John Stuart Mill made a major contribution to this doctrine as well as to politics, economics, women's rights, philosophy and logic. He was by any standards a prolific writer and had an enormous influence on social and political life in nineteenth-century Britain and on the European continent.

Utilitarianism was originally published over three issues of the monthly *Fraser's Magazine* in 1861, and then collected together as a short book in 1863. It should be noted that Mill's aim in *Utilitarianism* was to expound and defend the doctrine of utilitarianism for the more general public, rather than to construct arguments for narrowly philosophic purposes. It should be remembered that, whatever view one comes to about its philosophical content, in its time the doctrine was, and was seen to be, radical and utopian by both its adherents and its detractors.

Reading

Primary text

Utilitarianism is not long, and you should read it in its entirety. It is obtainable on the internet via Project Gutenberg (www.gutenberg.org), but a particularly useful edition – because of the editor's introduction and notes – is:

Crisp, Roger (ed.) *Utilitarianism* by J.S. Mill. (Oxford: Oxford University Press, 1998) [ISBN 019875163X].

Recommended essential reading

- * Brink, D. 'Utilitarian Morality and the Personal Point of View', *Journal of Philosophy*, 83(8), 1986, pp.417–38.
 - * Donner, W. 'Mill's Utilitarianism' in Skorupski, John (ed.) *Cambridge Companion to Mill*. (Cambridge: Cambridge University Press, 1998) [ISBN 0521419875].
 - * Rawls, J. 'Two Concepts of Rules', *Philosophical Review*, 64(1), 1955, pp.3–32.
 - * Sayre-McCord, G. 'Mill's 'Proof' of the Principle of Utility: A More than Half-Hearted Defense' in Paul, E.F., F.D. Miller and J. Paul (eds) *Moral Knowledge*. (New York: Cambridge University Press, 2001) [ISBN 0521006031] pp. 330–60.
 - * Singer, M. 'Actual Consequence Utilitarianism', *Mind*, 86(341), 1977, pp.67–77.
 - * Urmson, J.O. 'The Interpretation of the Moral Philosophy of John Stuart Mill', *Philosophical Quarterly*, 3(10), 1953, pp.33–39.
 - * Williams, B. 'A Critique of Utilitarianism' in Smart J.J.C. and B. Williams *Utilitarianism: For and Against*. (Cambridge: Cambridge University Press, 1973) [ISBN 052109822X] pp.77–150.
- Wilson, Fred 'John Stuart Mill', *The Stanford Encyclopedia of Philosophy* (Spring 2012 edition), Edward N. Zalta (ed.), <http://plato.stanford.edu/archives/spr2012/entries/mill/>. Especially the sections on Mill's moral and political views.

Further reading

- Foot, P. 'Utilitarianism and the Virtues', *Mind*, 94, 1985, pp.196–209.
- Scheffler, S. (ed.) *Consequentialism and its Critics*. (Oxford: Oxford University Press, 1988) [ISBN 0198750730].
- Crisp, Roger *Mill on Utilitarianism*. Routledge Philosophy Guidebook. (London: Routledge, 1997) [ISBN 0415109787].
- Sen, Amartya and Bernard Williams (eds) *Utilitarianism and Beyond*. (Cambridge: Cambridge University Press, 1982) [ISBN 0521242967].
- Sinnott-Armstrong, Walter 'Consequentialism', *The Stanford Encyclopedia of Philosophy* (Winter 2011 edition), Edward N. Zalta (ed.) <http://plato.stanford.edu/archives/win2011/entries/consequentialism/>
- Skorupski, John (ed.) *The Cambridge Companion to Mill*. (Cambridge: Cambridge University Press, 1998) [ISBN 9780521419871].
- Thomson, J.J. 'Goodness and Utilitarianism', *Proceedings and Addresses of the American Philosophical Association*, 67(4), 1994, pp.7–21.

Defining utilitarianism

Here is Mill's definition of utilitarianism as offered in Chapter II:

The creed which accepts as the foundation of morality 'utility' or 'the greatest happiness principle' holds that actions are right in proportion as they tend to promote happiness; wrong as they tend to produce the reverse of happiness. By happiness is intended pleasure and the absence of pain; by unhappiness, pain and the privation of pleasure.

As he notes straightaway, much needs to be filled in before one can fully judge this definition, but even in this form, much can be said.

Three things stand out. First, Mill is not here proposing some new conception of morality, some recommendation for revising in a major way our intuitions about what is right, good and virtuous. What he is offering instead is a 'foundation' for morality – an account which will in some appropriate way explain the moral judgments we ordinarily make.

Second, an essential element in providing such a foundation is **consequentialism**. In the above definition, Mill says that an action is right insofar as it 'tends to promote happiness'; that is, insofar as the consequences of performing that action have consequences for human happiness. More will be said about consequentialism below, but it is of course unsurprising that it plays a central role. Utilitarianism was championed by Jeremy Bentham and Mill's father James, and consequentialism is one of the signal characteristics of Bentham's treatment of the doctrine. As we will see, Mill introduced a more nuanced view of utilitarianism, but he never wavered in maintaining its consequentialist basis.

Third, the other main element in the doctrine is its **hedonism**, its insistence that the role of human happiness is fundamental in providing a foundation for morality. The above formulation seems wholly in line with Bentham's hedonism – happiness being itself defined as pleasure and the absence of pain – though there are important differences from Bentham that we will shortly consider. While Mill may well have given a more subtle treatment of consequentialism than Bentham – this will be considered later in this chapter – he most certainly did set out to do so in respect of hedonism.

These three points should serve as the main agenda items for your work on Mill, and in what follows below, I shall outline some of the issues that can be grouped under them. The first one up will be hedonism.

Happiness

Having given a summary definition of the doctrine (see above), the first real task of Chapter II of *Utilitarianism* is that of clarifying the notion of happiness. Bentham had thought this task rather straightforward, even mechanical. He believed that pleasure could be measured as greater or lesser in quantity (and similarly for pain), and that there were certain dimensions to pleasure which explained these differences. To take one example, some pleasures might be individual, intense and fleeting, while others are 'fecund': pleasure, in this latter case, leads to more pleasure. In his typically straightforward way, Bentham proposed a 'felicific' calculus – a sort of balance sheet – which we could and should use to work out the hedonistic consequences of actions we might undertake.

Mill very much complicates this picture, and he does so explicitly to make utilitarianism more acceptable, both by recognising the specialness of human beings and by encouraging a better fit between everyday value judgments and those recommended by utilitarianism. These complications are, however, highly controversial.

He claims that the pleasures which define happiness differ not only in quantity, but also in quality. This can sound a bit like Bentham's notion of pleasures that are, or are not, fecund, but that is misleading. For Bentham, some pleasures might well be better at generating greater quantities of further pleasure, but, at bottom, there is no distinction of quality among them. In contrast, Mill insists that some pleasures are 'better' than others – are of a higher quality – and these somehow should count for more in our decision-making. Thus, he clearly regards various intellectual and artistic pleasures as superior to bodily ones. The former are more appropriate to human endeavours; the latter we share with other animals. Motivating this difference, without simply relying on some Aristotelian doctrine of the good for humankind, he offers a decision criterion for it: the higher pleasures are those that would be chosen by subjects who had experienced both.

The several pages in which the quantity-quality distinction is discussed bear careful reading. One issue that doesn't seem to come up impacts directly on another of the main tenets of utilitarianism: its consequentialism. As is clear in the earlier definition and throughout *Utilitarianism*, Mill's consequentialism requires agents to undertake those actions whose consequences maximise happiness (i.e. pleasure or, to use the appropriate word here, 'utility'). However, it is far from obvious how one can maximise something which comes in two, apparently incommensurable, forms: higher and lower. Nor is this the only source of controversy, for the idea of there being a proper judge of types of pleasure is far from as straightforward as Mill makes it sound. He speaks of the proper judge as someone who has experienced both,

but many have felt this both insufficiently clear and even unmotivated.

Greatest happiness

The remainder of Book II gives Mill's replies to a series of objections to utilitarianism, some of which were clearly made in various public forums, and some which Mill himself formulates. In many of these replies, he stresses something which is crucial for the first of the points we made about his definition: the idea that utilitarianism is foundational, not for some 'new' morality, but for morality as we find it. This something is the idea that when the utilitarian speaks of 'the greatest happiness', what is meant is the total sum of happiness for all human beings. He writes:

I must again repeat what the assailants of utilitarianism seldom have the justice to acknowledge, that the happiness which forms the utilitarian standard of what is right in conduct is not the agent's own happiness, but that of all concerned. As between his own happiness and that of others, utilitarianism requires him to be as strictly impartial as a disinterested and benevolent spectator.

As this last point is often summed up: when considering the consequences of your actions, everyone, yourself and others, counts for one and no more than one.

Mill needs to explain why anyone would be motivated to act in what might well be, in certain circumstances, against one's own self-interest. But it is worth asking a prior question: what grounds the inclusion of this proviso in the first place? It cannot be simply the principle requiring us to maximise happiness because the implementation of this principle depends on a prior decision about how to sum the happiness of multiple agents. That it is a fair proviso – a moral one – is undoubtedly true, but insofar as utilitarianism aims to offer a foundational explanation of morality, it seems wrong to assume a principle of moral fairness in its very definition.

I have cited several areas of difficulty, but Mill is at his strongest when he considers the politically reformist aspects of utilitarianism. In answering those critics who think that happiness is rather pie-in-the-sky for human beings, or who think that it is not a reasonable goal, Mill eloquently defends the idea that human societies can and should do better for their members. While nothing can prevent the unhappiness that comes from illness and loss, much more can be done, he says, to make life better for the generality of human beings. Increased effort in education, more humane working conditions and the use of resources to improve public health – all recommendations of the utilitarian programme of

Bentham and Mill – would further the sum total of human happiness or at least make for less unhappiness than is presently the case.

A further objection that Mill canvasses (and tries to answer) has been a staple of discussions not only of Mill's utilitarianism, but also of most contemporary offshoots of his account. Indeed, it is an objection that goes to the heart of any account which defines moral goodness in terms of maximising outcomes, whether the maximisation is hedonist or not. Mill writes: 'They say it is exacting too much to require that people shall always act from the inducement of promoting the general interests.' The problem here is not simply that utilitarianism demands that we take an interest in others' happiness – that is something we looked at above – it is that a committed utilitarian is required 'always' to plan on the basis of appropriate maximising of consequences. For example, imagine getting up in the morning and asking yourself what you should do today. If you are a utilitarian, the answer would seem to be this: you should set about increasing the sum total of human welfare by whatever means are at your disposal, including the spending of a good portion of your available funds. Were you to resist doing this, this could only be because you counted yourself as more valuable than others, something in clear violation of the utilitarian standard.

Mill has a reply to this objection, and you should decide for yourself if you think it suffices. However, the context in which Mill considers this issue brings us back to the very first point made about his definition of utilitarianism, namely its role in providing a foundation for morality. In rough outline, a foundation for morality would be one which gave us insight into our moral life, but did so while preserving most of the strongly held intuitions we have about that life. I will return to one further aspect of Chapter II below, but it is Chapter V that most thoroughly explores the possible mismatch between everyday moral intuitions and the principle of utility.

Justice

In Chapter V, Mill considers an objection to utilitarianism that is formidable and has turned out to be a perennial issue in discussions of contemporary versions of the doctrine. The objection arises from our sense that justice has a special kind of binding force on us and leads to moral assessments which are quite different from those we would expect a utilitarian to make. Mill writes: '...people find it difficult to see in justice only a particular kind or branch of general utility, and think that its superior binding force requires a totally different origin.'

Mill then paints a complex picture of justice as it is ordinarily conceived, and uses elements in that picture to argue that the best grounding we can give to our

intuitions of justice is in the end a utilitarian one. Very roughly, the picture can be outlined as follows:

1. Our sense of justice is best understood as a desire to punish those who seek to harm others. Thus, if someone is lied to, or he is incarcerated, or his possessions are taken from him, and these things are done for no reason except, say, the gratification of someone else, then this person has been harmed, and we have the very strong sentiment that this harm must be made good or, better, prevented.
2. The best account we can give of this sentiment is one based on what Mill takes to be our natural instincts for self-defence and sympathy. When we are the sufferer of these harms, we react against them from self-defence; when others are seen to suffer, we react because of the sympathy we feel for other human beings.
3. However, while these instincts might explain the strong sentiment we have that justice must be served and injustice resisted, these sentiments do not explain the underlying basis for the arrangements in society we count as just. For that, Mill thinks, only utilitarianism can help. His idea is that there is a utilitarian foundation to those rules of society which forbid us to harm others in the ways described; the rules of justice, in effect, makes things go better for – increase the happiness of – all members of the society. So while our sense of justice comes from a primitive pair of instincts – self-defence and sympathy – its content has a utilitarian basis.

This picture, some parts of which resemble Hume's, can seem compelling, and in some form or other it continues to have appeal to many contemporary writers about human social and moral institutions. But it is not without its problems, and the jury is certainly out on the question of whether utility is consistent with justice, let alone whether it offers the best foundation for it.

At one point, Mill briefly mentions the injustice of 'punishing' someone who had committed no crime merely because doing so would set an example to others. Imagine a judge who knew a defendant hadn't stolen anything, but who found him guilty and sentenced him anyway because the judge thought it would deter would-be burglars. Variations on this sort of case have been widely discussed in the literature, and they go to the heart of the issue of justice and utility that Mill didn't perhaps probe sufficiently. For, as they are set up, these sorts of cases are meant to show that utility – acting so as to increase the sum of human happiness – is something we can achieve by acting **against** our sense of what is just. For, surely, knowingly sentencing someone for a crime he didn't commit is unjust.

Rules

A short note should be inserted here about two forms of utilitarianism – forms which Mill didn't himself discuss at any length, but which are arguably present in *Utilitarianism*. Moreover, though the main textual source for the distinction in Mill is in Book II, some have argued that the distinction itself might be useful in dealing with the tensions between justice and utility.

In answering an objection near the end of Book II, Mill seems to distinguish between what have come to be called 'act' and 'rule' utilitarianism. The former – the one which seems simplest and most direct – requires that each act we set out to perform maximises happiness for everyone affected by what we do. In apparent contrast, the rule-utilitarian says that we should act in accordance with rules, which, in being instituted as rules for a society, themselves promise to maximise happiness. Mill's appeals to a nautical analogy suggest that he himself made some such distinction. Just as sailors consult a nautical almanac rather than calculating its table each time a navigational decision is required, human beings, being rational, 'go out upon the sea of life with their minds made up on the common questions of right and wrong'.

There is a huge literature on this distinction, and some question whether it is really a distinction without a difference, whether, that is, rule-utilitarianism doesn't in the end reduce to act-utilitarianism. Those who do think there is a real difference between these two forms think that rule-utilitarianism offers the best hope of defending the utilitarian project from apparent counterexamples. For example, the judge in the case described above should not attempt to promote the general happiness by **acting** on his estimation of what will happen if he sentences the innocent defendant. Instead he should rely on the established **rule** that only the guilty should be punished, because the greatest happiness is best served by having this in place, and sticking to it.

Conscience

In the short Chapter III, Mill considers what he calls 'the ultimate sanction of the principle of utility'. By 'ultimate sanction' he means the ground or source of our sense of being bound to act on what we take to be our moral duties. Mill claims that there can be two such sources: external and internal. Fear of losing one's reputation, or fear of retribution from a deity, are both counted as external reasons for moral obligations. The largest part of his discussion is reserved for internal reasons, and he concludes: 'The ultimate sanction, therefore, of all morality (external motives apart) being a subjective feeling in our own minds, I see nothing embarrassing to those whose standard is utility...' He then goes on to describe this subjective feeling as, broadly, conscience.

If conscience is indeed the psychological state that acts as the source of our moral obligations, it isn't unreasonable to think it could apply to utilitarianism, as well as it does to any other conception of morality. But, in a Kantian spirit, it is worth asking whether a subjective feeling which might well be the source of our feeling obligated could also be its ground. Here is a different sort of example that might help to sort out this difference. If someone insults me, I may well feel aggrieved at this behaviour and respond by, for example, having nothing further to do with the person who insulted me. My feelings in this case certainly explain this response, but would we really want to say that they justify or ground it? I think not; the ground of my response is surely going to be some story about why the insult was unmerited and insensitive. This is what grounds both my response and my having had the feelings I did. Similarly, in a case where I feel the obligation to keep a promise, there is no doubt that I may well feel this obligation. Keeping my promise is not something I would justify by appeal to this feeling but, rather, by appealing to the moral status that I take promises to have. Mill is aware of this issue, but it is unclear how well he deals with it in Chapter III.

Proof

In Chapter IV Mill offers what he calls a 'proof' of the principle of utility, and given the way many philosophers have reacted to what Mill wrote, it should perhaps be called the 'notorious proof'. He begins by asserting: The utilitarian doctrine is that happiness is desirable, and the only thing desirable as an end.' Can this be proven? Mill writes:

The only proof capable of being given that an object is visible is that people actually see it.
The only proof that a sound is audible is that people hear it... In like manner, I apprehend, the sole evidence it is possible to produce that anything is desirable is that people do actually desire it.

Taken at face value, this passage is often cited as the source of a terrible argument. The problem is that 'visible'/'audible' mean 'can be seen/heard', whereas 'desirable' means 'is worthy of being desired' rather than 'can be desired'. This has been enough for many to condemn Mill's proof as hopeless. Others have argued that we shouldn't take this 'proof' at face value in this way, and that Mill does have a point. Perhaps what he was suggesting is that the best way to determine whether something is desirable in the sense of being worthy to be desired is by finding that it happens to be desired by most people. Moreover, an interpretation along these lines opens up a larger, and potentially more important, issue, one rather fundamental to the study of value itself. For how one understands the very idea of being worthy of being desired is at the heart of everyone's theory of value.